

THE NCA HUB

Examination Preparation

CANADIAN CIVIL PROCEDURE

COMPREHENSIVE STRATEGIC NOTES

Aligned with the NCA Civil Procedure Syllabus (Revised 2024)

Anchored in: Rules of Civil Procedure (Ontario), R.R.O. 1990, Reg. 194

Open-Book | 3 Hours | 100 Marks | Pass: 50%

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Scope and Currency

These Strategic Notes are prepared with reference to the NCA Civil Procedure Syllabus revised in 2024 and confirmed as current at the time of writing. The default jurisdiction throughout this document is Ontario, consistent with the NCA syllabus, but candidates registered to practise in another Canadian jurisdiction may use the Rules and statutes of that jurisdiction provided they identify them precisely on the examination.

How to Use These Notes

These Strategic Notes provide comprehensive, exam-focused coverage of every testable topic on the NCA Civil Procedure syllabus (revised 2024). They are designed to function as your primary open-book reference document during the examination - concise enough to navigate quickly, dense enough to answer with.

Parameter	Detail
Format	Open-book. Hard-copy notes only - no electronic devices, tablets, or phones. Online exams use a secure browser-based platform.
Duration	3 hours (180 minutes)
Pass Mark	50% - pass/fail grading
Total Marks	100
Default Jurisdiction	Ontario: Rules of Civil Procedure (R.R.O. 1990, Reg. 194); Limitations Act, 2002; Courts of Justice Act; Class Proceedings Act, 1992. Candidates from other provinces may use their own Rules if clearly identified.
Question Style	Problem-based fact patterns. The official 2022 sample exam used a single fact pattern with five questions (4 × 20-mark essay/problem questions + 1 × 10 sub-question True/False).
Citation Requirement	The syllabus expressly warns: "Reference must be made to relevant materials - rules, cases, codes, commentaries - and failing to do so will negatively affect your grade."
Self-Taught	The course has no required textbook. The Rules themselves are the primary required materials, supplemented by statutes, leading cases, and commentaries.

The Three-Step NCA Method

- **STEP 1 - ISSUE IDENTIFICATION:** Read the question first, then read the facts. Mark every procedural issue in the margin before writing. A typical Civil Procedure question embeds 4–6 sub-issues. Missing issues lose marks regardless of how well you answer the issues you spot.
- **STEP 2 - RULE PLUS CASE PLUS RULE NUMBER:** For every issue, state the rule with the specific case authority and the specific Rule number. "Under Rule 20.04(2.1), the court has enhanced fact-finding powers on a summary judgment motion (*Hryniak v Mauldin*, 2014 SCC 7)." Bare doctrine without rule numbers and case names earns half marks.
- **STEP 3 - APPLY EVERY RULE TO THE FACTS:** Connect every rule to specific facts in the question. Use "because" to force the connection. "Because the recording was made by a former employee with no continuing duty of confidentiality, it is producible under Rule 30.02(1) and not subject to litigation privilege." Bare conclusions earn nothing - analysis earns the bulk of marks.

⚠ EXAM TIP - THE NCA EXAMINER'S OWN GUIDANCE

The NCA's official guide How to Answer Fact-based Law Exam Questions states: "It is the analysis in between [the law and the conclusion] which will determine the bulk of your performance on the exam." Use IRAC for every sub-issue, not just for the question as a whole. State a roadmap sentence at the top of each answer ("To resolve this question, three issues arise: [a], [b], and [c].") so the marker can follow your structure.

Master Civil Procedure Framework

Every Civil Procedure problem reduces to the same five sequential questions. Work through them in order - the answer to an earlier question often forecloses or reframes a later one (no jurisdiction means no live limitations question; pleadings struck under Rule 21 ends the case before discovery).

The Five Civil Procedure Questions	What to Apply
1. JURISDICTION & PARTIES - Does the right court have jurisdiction over this dispute and over these parties?	Constitution Act 1867 ss 92(13)–92(14); CJA s 11(2); Rules 16 (service in jurisdiction), 17 (service outside Ontario), 13 (intervention), 14 (commencement of proceedings); Club Resorts Ltd v Van Breda 2012 SCC 17 (four presumptive connecting factors); forum non conveniens; Sinclair v Venezia Turismo, 2025 SCC 27 refining Van Breda; standing - Downtown Eastside 2012 SCC 45; capacity - Rule 7.
2. COMMENCEMENT & PLEADINGS - Has the claim been properly commenced and pleaded within time?	Limitations Act 2002 ss 4, 5, 7, 15; Grant Thornton 2021 SCC 31 (plausible inference of liability); Rules 14 (originating processes), 18 (defence), 25 (form of pleadings), 26 (amendment), 27–29 (counter, cross, third party); 76 (simplified procedure); pleadings particulars - Moosa, Copland; punitive damages - Whiten v Pilot Insurance.
3. PRE-TRIAL CONDUCT - How is information exchanged and how are interlocutory issues resolved?	Rule 29.1 (discovery plan); Rule 29.2 (proportionality); Rule 30 (documentary discovery); Rule 30.1 (deemed undertaking); Rule 31 (oral discovery); Rule 33 (medical exams); Rule 53.03 (experts); privilege - Pritchard, Blank, Lizotte, Smith v Jones, Union Carbide, AM v Ryan; Rules 24.1 (mandatory mediation), 50 (pre-trial); Rule 37 (motions); Rule 39 (motion evidence); RJR-MacDonald (injunctions).
4. DISPOSITION - Will the matter resolve through trial, summary disposition, dismissal, default, or settlement?	Rule 19 (default); Rule 20 (summary judgment) - Hryniak 2014 SCC 7 "culture shift"; Rule 21 (strike pleadings) - Imperial Tobacco "plain and obvious"; Rule 22 (special case); Rule 23 (discontinuance); Rule 24 (dismissal for delay); Rule 25.11 (strike scandalous, etc); Rule 2.1 (frivolous on paper); Rules 38 (applications), 46–47 (jury trial); Rule 49 (settlement offers); Rule 51 (admissions).
5. COSTS, REMEDIES & APPEALS - Who pays, what was won, what can be appealed?	CJA s 131; Rules 56 (security for costs), 57 (costs principles), Tariff A; Rule 49 cost consequences; Solicitors Act; Anderson v Alberta (advance costs); CJA s 6 (Court of Appeal), s 19 (Divisional Court); Rules 61–63 (appeals, stays); Penner 2013 SCC 19 (issue estoppel).

⚠ EXAM TIP - NAVIGATE EVERY FACT PATTERN BY THIS FRAMEWORK

When you read a Civil Procedure fact pattern, walk through the five questions in order. The official 2022 NCA sample exam Q1 (commencing proceedings against Acme), Q2 (ADR), Q3

(discovery), and Q4 (summary judgment / striking) map directly onto Questions 2, 3, and 4 of this framework. Q5 (True/False sub-questions) tests Questions 1, 2, 3, and 5 in compressed form.

Master Statutory Source Roadmap

Civil Procedure in Ontario rests on a layered statutory and rule-based framework. The Rules govern procedure inside the courts; the Limitations Act governs when claims must be brought; statutes such as the Class Proceedings Act and the Courts of Justice Act govern specific procedural mechanisms and the structure of the courts themselves. These are the sources you must cite by name (and, where the syllabus directs, by section or rule number) on the examination.

Source	What It Governs
Constitution Act, 1867 (UK), 30 & 31 Vict, c 3 - ss 92(13), 92(14), 96–101	Provincial jurisdiction over property and civil rights and over the administration of justice in the province; federal appointment of superior court judges (s 96).
Courts of Justice Act, RSO 1990, c C.43	Structure of Ontario's courts (Court of Appeal, Superior Court of Justice, Small Claims Court). s 11(2) (SCJ as a superior court of inherent jurisdiction); s 87 (Associate Judges, formerly Masters); s 101 (injunctions); s 131 (costs in court's discretion); s 138 (procedural orders to be liberally construed).
Rules of Civil Procedure, RRO 1990, Reg 194	The procedural code in Ontario. Roughly 76 numbered Rules covering everything from definitions (Rule 1.03), proportionality (Rule 1.04(1.1)), pleadings (Rules 14–29), discovery (Rules 29.1–33), motions (Rule 37), summary judgment (Rule 20), striking pleadings (Rule 21), trials (Rules 38, 46–47), costs (Rules 56–58), and appeals (Rules 61–63).
Limitations Act, 2002, SO 2002, c 24, Sch B	Basic two-year limitation period (s 4); discoverability (s 5); ultimate fifteen-year limitation (s 15); tolling for minors and incapacity (s 6, 7); special rules for assault and sexual assault (s 16); transition rules for pre-2004 claims.
Class Proceedings Act, 1992, SO 1992, c 6 (as amended by Smarter and Stronger Justice Act, 2020)	Five certification criteria (s 5(1)); superiority and predominance test for the preferable procedure analysis (s 5(1.1), in force October 1, 2020); settlement approval (s 27.1); costs (s 31); fees and disbursements (s 32–33). Bill 161 reforms apply to actions commenced on or after October 1, 2020.
Federal Courts Act, RSC 1985, c F-7	Structure of the Federal Court and Federal Court of Appeal; jurisdiction over federal subject matter (immigration, intellectual property, federal Crown actions, admiralty).
Federation of Law Societies of Canada, Model Code of Professional Conduct	Lawyer's professional obligations within the litigation process (rr 3.2 - quality of service; 5.1 - advocate; 7.2 - communications with another lawyer).
Arbitration Act, 1991, SO 1991, c 17	Domestic arbitration; s 7 mandatory stay of court proceedings where there is an arbitration agreement

Source	What It Governs
	(subject to limited exceptions).
Commercial Mediation Act, 2010, SO 2010, c 16, Sch 3	Statutory framework for commercial mediations in Ontario.
Solicitors Act, RSO 1990, c S.15	Contingency fees (s 28.1); assessment of bills (ss 2–10); solicitor and client costs.

Chapter 1: Background to the Civil Dispute Resolution Process

Civil procedure is the body of rules that governs how disputes between private parties (or between private parties and the State acting in a private-law capacity) are resolved through the courts. Distinguished from criminal procedure (where the State prosecutes individuals), administrative procedure (where tribunals adjudicate regulatory disputes), and constitutional procedure (where courts interpret the Constitution), civil procedure is the workhorse of everyday justice - the framework within which contracts are enforced, torts compensated, property disputes resolved, family disputes adjudicated, and class wrongs remedied.

1.1 Three Purposes of the Civil Justice System

Civil procedure serves three interlocking purposes:

- **Dispute resolution.** Providing a peaceful, authoritative, and final means of resolving disputes between private parties so that disagreements do not require self-help or escalate into broader social conflict.
- **Behaviour modification.** By making remedies available to those wronged, the civil justice system deters wrongdoers and encourages parties to bargain in the shadow of the law ("if you breach this contract, I will sue and you will pay damages plus costs").
- **Just outcomes.** Not merely process, but substantively just resolution - outcomes consistent with the rule of law, public values, and the constitutional framework. *Hryniak v Mauldin* makes this purpose explicit by reframing access to justice as access to substantively just outcomes, not merely access to a courtroom.

1.2 The Access-to-Justice Crisis

Civil procedure cannot be understood without acknowledging the access-to-justice crisis the syllabus identifies as the framing context for the entire course. Trevor Farrow's research for the Canadian Forum on Civil Justice (Everyday Legal Problems and the Cost of Justice in Canada, 2016) found that nearly half of all adult Canadians experience an everyday legal problem in any given three-year period, and that the legal system rarely resolves them. Most Canadians who experience legal problems do not consult a lawyer and do not turn to the courts. The gap between rights and remedies - between what the law promises and what ordinary people can actually obtain - is the systemic problem the courts and the procedural reforms of the past decade are trying to close.

Hryniak v Mauldin, 2014 SCC 7, [2014] 1 SCR 87 - the "culture shift" decision

Facts: American investors (the Mauldin Group) invested USD 1.2 million with Robert Hryniak's Toronto-based Tropos Capital. The funds disappeared offshore. The investors sued Hryniak, his lawyer Peebles, and the law firm Cassels Brock for civil fraud and brought a Rule 20 motion for summary judgment.

Held (Karakatsanis J., unanimous): Summary judgment was properly granted against Hryniak. Trial was no longer the default model of adjudication; summary judgment had become "a

significant alternative model of adjudication."

The roadmap (paras 49–66): On a Rule 20 motion the judge first determines whether there is a genuine issue requiring a trial. There is no genuine issue if the motion record provides the evidence necessary to fairly and justly determine the dispute and summary judgment is timely, affordable, and proportionate. If a genuine issue appears, the judge then decides whether the need for a trial can be avoided by exercising the enhanced fact-finding powers under Rule 20.04(2.1) (weighing evidence, evaluating credibility, drawing reasonable inferences) or by hearing oral evidence under Rule 20.04(2.2). These powers are presumptively available unless their use would be against the interests of justice.

Significance: The decision called for a "culture shift" away from the traditional view that trial is the default model of adjudication. "Ensuring access to justice is the greatest challenge to the rule of law in Canada today" (para 1). Hryniak is cited in virtually every modern Canadian civil procedure decision and sits at the intersection of summary judgment, proportionality, and access-to-justice analysis.

Hryniak runs through this entire course like a thread. Wherever you see proportionality (Rule 1.04(1.1)), summary judgment (Rule 20), pre-trial case management (Rule 50, Rule 77), or access-to-justice analysis under the Class Proceedings Act, 1992, you are seeing the culture shift in action.

1.3 Process and Professionalism

The civil litigation process is not just rule-bound - it is also bound by the professional obligations of the lawyers who navigate it. The Federation of Law Societies of Canada Model Code of Professional Conduct (and its provincial enactments such as the Law Society of Ontario's Rules of Professional Conduct) imposes duties of competence (r 3.1), candour (r 5.1-2), encouragement of settlement (r 3.2-4), and fair dealing with opposing counsel (r 7.2). Most provincial codes specifically require lawyers to encourage their clients to compromise where compromise is reasonable (Model Code r 3.2-4: "A lawyer must advise and encourage the client to compromise or settle a dispute whenever it is possible to do so on a reasonable basis...").

Several Rules embed professionalism directly: Rule 4.06.1 (sworn statements, including the affidavit's signature requirements); Rule 4.1 (duty of an expert: to assist the court fairly, objectively, and non-partisanly - Form 53 acknowledgment of the expert's duty); and Rule 30.1 (the deemed undertaking - discovery information cannot be used outside the proceeding for which it was obtained).

△ EXAM TIP - FRAME EVERY ANSWER WITH PROPORTIONALITY

Rule 1.04(1.1): "In applying these rules, the court shall make orders and give directions that are proportionate to the importance and complexity of the issues, and to the amount involved, in the proceeding."

On any motion, any disposition question, any costs question, any discovery question - cite Rule 1.04(1.1) and reference Hryniak's culture shift. The framing is mandatory because proportionality is the lens through which Canadian civil procedure is now applied.

Chapter 2: Basic Institutions and Processes

Civil procedure does not operate in the abstract - it operates inside specific institutions with specific competences, hierarchies, and procedural norms. Knowing which court has jurisdiction over which kind of dispute is foundational to every fact pattern.

2.1 Constitutional Foundation

Civil procedure is fundamentally a provincial subject. The Constitution Act, 1867 allocates this responsibility through three sections:

- **Section 92(13) - "Property and Civil Rights in the Province"**. The substantive law of contracts, torts, property, and family is provincial.
- **Section 92(14) - "The Administration of Justice in the Province, including the Constitution, Maintenance, and Organization of Provincial Courts..."**. Each province makes its own Rules of Civil Procedure and operates its own court system.
- **Sections 96–101**. The federal Crown appoints superior court judges (the s 96 power). Federal Parliament can establish a general court of appeal (the Supreme Court of Canada under the Supreme Court Act, RSC 1985, c S-26) and additional courts "for the better administration of the laws of Canada" (the Federal Court and Federal Court of Appeal under the Federal Courts Act, RSC 1985, c F-7).

Reference re Code of Civil Procedure (Que.) art. 35, 2021 SCC 27 confirms that civil procedure remains primarily within provincial jurisdiction, while recognising constitutional limits on provincial restrictions of the s 96 superior courts' core jurisdiction.

2.2 Ontario's Court Structure

Court	Jurisdiction & Key Features
Court of Appeal for Ontario	Established by Courts of Justice Act (CJA) Part II. Hears appeals from final orders of the Superior Court of Justice (CJA s 6) and from the Divisional Court (CJA s 6). Three-judge panels by default; five for important matters.
Divisional Court	Branch of the Superior Court (CJA s 18–21). Hears statutory appeals (most administrative tribunal appeals); single-judge appeals from interlocutory orders of the Superior Court (CJA s 19); judicial review applications under the Judicial Review Procedure Act.
Superior Court of Justice	Court of inherent jurisdiction (CJA s 11(2)). Tries most civil actions over \$50,000 (the Small Claims Court ceiling effective October 1, 2025). Includes specialised lists: Commercial List (Toronto), Estates List, Family Court, Civil List for case management (Rule 77 - Toronto, Ottawa, Windsor).
Small Claims Court	Branch of the Superior Court (CJA s 22). Handles claims up to \$50,000 (O Reg 626/00, s 1, as amended; the limit was raised from \$35,000 to \$50,000 effective October 1, 2025). Streamlined

Court	Jurisdiction & Key Features
	procedure under Rules 1–4 of the Small Claims Court Rules (separate from the Rules of Civil Procedure). Deputy judges preside. Final-order appeals to the Divisional Court are available where the amount in dispute exceeds \$5,000 (raised from \$3,500 effective October 1, 2025).
Federal Court / Federal Court of Appeal	Established by the Federal Courts Act. Specialised jurisdiction over federal matters: immigration, intellectual property, federal Crown actions, admiralty. Limited concurrent jurisdiction with provincial superior courts in some areas.
Supreme Court of Canada	Final court of appeal for Canada. Hears appeals by leave (Supreme Court Act s 40) and as of right in limited circumstances. Constitutional and important national questions.

2.3 Distinguishing Courts, Tribunals, and Other Forums

Not every dispute belongs in a court. The Statutory Powers Procedure Act, RSO 1990, c S.22 (SPPA) sets minimum procedural requirements for Ontario administrative tribunals (s 3 - application; s 4 - waiver of natural justice rights). Tribunals have statutory authority over specific subject matter (Human Rights Tribunal of Ontario under the Ontario Human Rights Code; Landlord and Tenant Board under the Residential Tenancies Act; Workplace Safety and Insurance Appeals Tribunal under the WSI Act).

Private dispute resolution operates outside the courts altogether. Arbitration under the Arbitration Act, 1991 is enforceable as a contractual choice of forum, with s 7 mandating a stay of court proceedings where there is a valid arbitration agreement. Mediation, by contrast, is non-binding - the parties retain their right to litigate if mediation fails.

2.4 The Civil Litigation Process - A Roadmap

Most Ontario civil actions follow a recognisable arc:

1. Pre-litigation (notice letters, pre-action protocols, attempts at negotiation, collection of evidence, retainer with counsel).
2. Commencement: statement of claim issued and served (Rules 14, 16); statement of defence filed (Rule 18, normally within 20 days).
3. Pleadings amendments and joinder (Rules 25–29).
4. Discovery: documentary discovery (Rule 30); examinations for discovery (Rule 31); discovery plans (Rule 29.1); proportionality (Rule 29.2).
5. Interlocutory motions: striking pleadings (Rule 21), summary judgment (Rule 20), particulars (Rule 25.10), discovery motions, injunctions (Rule 40).
6. Mediation (Rule 24.1 mandatory in Toronto, Ottawa, Windsor) and pre-trial conference (Rule 50).
7. Trial: action proceeds to trial (Rules 46–53) or application is heard (Rule 38).
8. Judgment: orders entered, costs assessed (Rules 56–58).

9. Appeal: to the Court of Appeal or Divisional Court depending on the order (CJA ss 6, 19; Rules 61–63).
10. Enforcement: writ of seizure and sale (Rule 60.07); garnishment (Rule 60.08); examination in aid (Rule 60.18).

⚠ EXAM TIP - RULE 1.04(1.1) - PROPORTIONALITY GOVERNS EVERY ORDER

On any procedural question, you must cite Rule 1.04(1.1). It applies to every court order - discovery management, motion timetables, costs, summary judgment, mediation referrals - and is the codification of the Hryniak culture shift in the Ontario Rules. A typical answer should read: "Under Rule 1.04(1.1), the court must make orders proportionate to the importance and complexity of the issues and the amount involved. Here, [proportionality factor] supports [outcome] (Hryniak v Mauldin, 2014 SCC 7)."

Chapter 3: Limitations, Capacity, Standing, and Parties

Before a court reaches the merits of any claim, four threshold questions must be answered. Is the claim within the limitation period? Does the plaintiff have legal capacity to sue? Does the plaintiff have standing? Are the right parties before the court? A failure on any of these threshold questions ends the claim before the substantive law is engaged.

3.1 Limitation Periods - The Statutory Framework

Ontario's principal limitations statute is the Limitations Act, 2002, SO 2002, c 24, Sch B. It replaced a patchwork of subject-specific limitation periods with a single, broadly-applicable framework.

Provision	Substance
s 4 - Basic limitation period	"Unless this Act provides otherwise, a proceeding shall not be commenced in respect of a claim after the second anniversary of the day on which the claim was discovered." Two years from discovery.
s 5 - Discoverability	Four-element test. A claim is discovered on the earlier of (i) actual knowledge that injury, loss or damage occurred; (ii) actual knowledge that it was caused by an act or omission; (iii) actual knowledge that the act or omission was that of the person against whom the claim is made; AND (iv) knowledge that, having regard to the nature of the injury, a proceeding would be an appropriate means to seek to remedy it. The earlier alternative is the date the plaintiff ought to have discovered the same facts by exercising reasonable diligence (constructive knowledge).
s 6 - Minors	The limitation period does not run while the claimant is a minor and not represented by a litigation guardian.
s 7 - Incapacity	The limitation period does not run while the claimant is incapable and not represented by a litigation guardian.
s 15 - Ultimate limitation period	Fifteen years from the date of the act or omission, even if discoverability has not yet occurred. The hard backstop.
s 16 - No limitation period	Specific causes of action exempt from any limitation period (e.g., claims arising from sexual assault - s 16(1)(h) since 2016 amendments - and certain claims involving minors and intimate partners).
s 21 - Adding a party	A limitation period does not stop running merely because a related claim has been commenced. Adding a new defendant must be done within the limitation period applicable to the claim against that defendant - an important trap for late joinder of parties.

3.2 The Discoverability Test

The common-law rule of discoverability - that a limitation period does not begin to run until the plaintiff has the knowledge necessary to bring the claim - is codified in s 5 of the Limitations Act, 2002. The Supreme Court of Canada's interpretation of this provision in *Grant Thornton* sets the governing standard for when the four-element s 5(1)(a) test crystallises.

Grant Thornton LLP v New Brunswick, 2021 SCC 31, [2021] 2 SCR 704

Facts: New Brunswick guaranteed loans of over \$50 million to Atcon Group of Companies based on Grant Thornton's audit opinion that Atcon's financial statements complied with generally accepted accounting principles. Atcon collapsed within four months. The Province paid out the guarantees in March 2010, retained another firm (Richter), received Richter's draft report in February 2011 contradicting Grant Thornton's audit, and commenced its negligence claim against Grant Thornton in June 2014.

Held (Moldaver J., unanimous): The claim was statute-barred. The two-year limitation period under New Brunswick's Limitation of Actions Act began running on February 4, 2011, when the Province received Richter's draft report - by then the Province had knowledge, actual or constructive, of material facts upon which a plausible inference of Grant Thornton's liability could be drawn.

The governing standard: "A claim is discovered when a plaintiff has knowledge, actual or constructive, of the material facts upon which a plausible inference of liability on the defendant's part can be drawn." The plausible inference is more than mere suspicion but less than certainty. The plaintiff need not know that the defendant owed a duty of care or that the defendant's act or omission breached the standard of care - that level of knowledge would set the threshold so high that limitation periods would never begin to run for plaintiffs without expert advice.

Constructive knowledge: A plaintiff has constructive knowledge of facts they ought to have discovered by exercising reasonable diligence. Suspicion can give rise to a duty of inquiry, applying *Crombie Property Holdings Ltd v McColl-Frontenac Inc*, 2017 ONCA 16.

Significance: Although *Grant Thornton* interpreted New Brunswick's statute, it has been applied across all common-law provinces with similar language, including Ontario. The Ontario Court of Appeal applied *Grant Thornton* in *Gordon Dunk Farms Limited v HFH Inc*, 2021 ONCA 681.

The Ontario s 5(1)(a) test layers an additional element on top of the *Grant Thornton* standard: s 5(1)(a)(iv) requires the plaintiff to know that, having regard to the nature of the injury, a proceeding would be an appropriate means to seek to remedy it. The Ontario Court of Appeal has read this element as a meaningful gate (see *Sosnowski v MacEwan Petroleum Inc*, 2019 ONCA 1005) - for example, where the plaintiff is reasonably waiting for a related criminal or regulatory proceeding to conclude before suing. *Grant Thornton*'s plausible inference standard governs the first three Ontario elements; s 5(1)(a)(iv) adds the appropriateness check.

MEMORY HOOK - DICE - the four s 5(1) discoverability elements

Damage occurred; Inflicted by an Act or Omission; Caused by the defendant; Effective remedy through a proceeding is appropriate - knowledge actual or constructive of all four crystallises the limitation.

Peixeiro v Haberman, [1997] 3 SCR 549

Facts: Plaintiff suffered injuries in a 1990 motor vehicle accident but the full extent of the injuries was not appreciated for some time. The Insurance Act limitation period required the action to be brought within two years of the accident.

Held (Major J., unanimous): The common-law discoverability rule applies to limitation statutes unless the legislation clearly displaces it. "A cause of action arises for purposes of a limitation period when the material facts on which it is based have been discovered or ought to have been discovered by the plaintiff by the exercise of reasonable diligence." Significant for confirming that the discoverability rule is the default presumption in Canadian law and not displaced absent clear statutory language. Cited extensively in *Grant Thornton*.

3.3 Capacity to Sue

Some persons cannot maintain a proceeding in their own name. Rule 1.03(1) defines "disability" as including a minor (under 18), a mentally incapable person within the meaning of the Substitute Decisions Act, and an absentee under the Absentees Act. Rule 7 governs litigation guardians: a person under disability sues or defends through a litigation guardian (Rule 7.01(1)). The litigation guardian must be 18 or over, have no interest adverse to that of the person under disability, and (where appointed for a defendant) provide certain undertakings (Rule 7.02). Settlement of any claim by or on behalf of a person under disability requires court approval (Rule 7.08).

3.4 Standing

Standing is the right to bring or defend a proceeding. There are two main routes: private interest standing (the plaintiff has a real, direct, personal stake in the outcome) and public interest standing (the plaintiff is a private litigant who would not ordinarily be sufficiently affected, but whose claim raises a serious justiciable issue and meets additional criteria).

Canada (AG) v Downtown Eastside Sex Workers United Against Violence Society, 2012 SCC 45, [2012] 2 SCR 524

Facts: A society advocating for the rights of sex workers in Vancouver's Downtown Eastside, together with Sheryl Kiselbach (a former sex worker), challenged the constitutional validity of various Criminal Code prostitution provisions. Neither had been charged. They sought public interest standing.

Held (Cromwell J., unanimous): Standing granted. The three factors for public interest standing are to be considered together purposively, not as a rigid checklist:

- 1. Serious justiciable issue.** The proposed action raises a substantial constitutional issue capable of judicial determination.
- 2. Genuine interest.** The plaintiff has a real stake in the proceedings or is engaged with the issues - typically demonstrated by past advocacy, organisational mandate, or relationship with the affected community.
- 3. Reasonable and effective means.** The proposed proceeding is, in all the circumstances, a reasonable and effective means of bringing the case before the court. This is the most flexible factor - courts consider the practical capacity of the plaintiff to litigate, the existence of other avenues (private actions, class actions, parallel proceedings), and whether public interest

standing serves the principles of access to justice and legality.

BC (AG) v Council of Canadians with Disabilities, 2022 SCC 27

Facts: The Council, a national disability advocacy organization, challenged the constitutionality of provisions of British Columbia's Mental Health Act allowing involuntary psychiatric treatment without consent. The original individual co-plaintiffs withdrew. The Council sought to continue alone.

Held (Wagner CJ, unanimous): Public interest standing granted. Reaffirmed Downtown Eastside three-factor test. Key clarifications:

- (i) The three factors are weighed together purposively. No single factor takes precedence. Access to justice and legality are important but not the only relevant considerations.
- (ii) The third factor - reasonable and effective means - requires the plaintiff to demonstrate the capacity to present a sufficiently concrete and well-developed factual setting. This may be done by reference to documentary evidence, expert reports, the plaintiff's organisational connections, or past parallel litigation.
- (iii) The existence of a parallel class action is relevant but not determinative. A class action may not adequately address the constitutional question or may not have been certified.

Significance: Confirms that public interest standing remains a flexible doctrine in Canadian civil procedure and that organisations advocating for marginalised groups can litigate even without an individual co-plaintiff. The decision is referenced in the syllabus and is required reading at paras 28–59.

3.5 Parties

Rule 5 governs joinder of claims, Rule 6 governs joinder and consolidation of proceedings, Rule 13 governs intervention by non-parties, and Rule 14 sets out party-related rules for commencement. Several specific provisions matter on the exam:

- **Rule 5.01:** Multiple plaintiffs (or defendants) may join in one proceeding where there is a common question of law or fact and the rights to relief arise out of the same transaction or series of transactions.
- **Rule 5.05:** Misjoinder or non-joinder of parties is not a ground to defeat a proceeding; the court may add or remove parties as needed.
- **Rule 13.01:** Intervention as added party - a person not a party may apply to intervene where they have an interest in the subject matter, may be adversely affected, or where there is a common question of law or fact between them and a party.
- **Rule 13.02:** Intervention as friend of the court - for assistance with novel issues.
- **Rule 14.06:** Form of pleadings: every originating process must contain a concise statement of the material facts on which the party relies.
- **Rule 15.01.1:** Parties acting in person - Rule expressly contemplates self-represented litigants and applies the same procedural standards.

3.6 Crown as Party

The Crown Liability and Proceedings Act, 2019, SO 2019, c 7 governs civil proceedings involving the Ontario Crown. Key features: (i) the Crown can sue and be sued in its own name; (ii) certain immunities apply for policy decisions, prosecutorial functions, and core executive functions; (iii) special procedural requirements (notice provisions, time limits) apply when suing the Crown. The federal equivalent is the Crown Liability and Proceedings Act, RSC 1985, c C-50.

⚠ **EXAM TIP - LIMITATIONS - THE FOUR-STEP ANALYSIS**

STEP 1: Identify the applicable limitation statute. Default in Ontario is the Limitations Act, 2002. Specific subject matter may have a different limitation (real property, ten-year period under Real Property Limitations Act; insurance, two years from discovery under the Insurance Act; family law support enforcement, no limitation under the Limitations Act 2002 s 16).

STEP 2: Determine when the four s 5(1)(a) elements crystallised, applying Grant Thornton's plausible inference of liability standard. Account for constructive knowledge - when ought the plaintiff to have known by exercising reasonable diligence?

STEP 3: Apply the basic limitation period (two years from discovery under s 4) and/or the ultimate fifteen-year period (s 15).

STEP 4: Check for tolling - minor (s 6), incapacity (s 7), specific exemptions (s 16). Check whether s 21 (related parties) prevents adding a defendant outside the period.

Chapter 4: General Matters, Commencing Proceedings, and Pleadings

Once the threshold questions are clear (jurisdiction, capacity, standing, limitations), the next step is properly to commence the proceeding and to plead the case. Choice of originating process, choice of procedure track (ordinary, simplified, or small claims), and the form and content of pleadings are all addressed in this chapter.

4.1 Proportionality - The Lens for Every Procedural Choice

Rule 1.04(1.1) requires the court to make orders and give directions "proportionate to the importance and complexity of the issues, and to the amount involved, in the proceeding." This proportionality principle, combined with Hryniak's culture shift, is the framing context for every choice of procedure: a \$40,000 claim should not be litigated on the same track as a \$40 million claim. Choice of procedure is itself a proportionality question.

4.2 Originating Processes - Action vs Application

Ontario civil litigation begins with one of two originating processes: an action (commenced by statement of claim) or an application (commenced by notice of application). The choice depends on the nature of the dispute, not the parties' preference.

Type	When to Use
Action - Rule 14.05(1)	Default. Used where there are likely to be material facts in dispute requiring oral evidence at trial. The vast majority of civil proceedings (negligence, breach of contract, property disputes, recovery of debt, defamation, employment) are actions.
Application - Rule 14.05(2), (3)	Used where the dispute is essentially a question of law (or of mixed fact and law) capable of being decided on documentary evidence and affidavits without oral evidence at trial. Includes statutory applications (judicial review, oppression remedies, will interpretation, application for declaration of rights, applications under particular statutes such as the Estates Act). Heard by a judge in a few hours; no examinations for discovery (though there is cross-examination on affidavits).

Specific situations where Rule 14.05(3) requires an application include: an application for a declaration where no other relief is claimed; the determination of rights under a contract; rectification, setting aside, or cancellation of a contract; the relief, settlement, or attestation of a will; the construction of a will or trust; and judicial review of administrative decisions. If the wrong originating process is chosen, the court may direct conversion (Rule 38.10 - application converted to action; Rule 14.05(3.1) and Rule 38.04 mechanisms). Choosing wrong is not fatal but causes delay and costs.

4.3 Form and Content of the Statement of Claim

The statement of claim is governed by Rule 14 (commencement), Rule 25 (form of pleadings), and Form 14A. Key requirements:

- **Rule 14.06(1):** Every originating process "shall contain a statement of the material facts on which the party relies for the claim, but not the evidence by which those facts are to be proved."
- **Rule 14.07:** Statement of claim issued by the registrar; must be served on each defendant within six months.
- **Rule 14.08:** Time for service - six months from issuance (twelve months for service outside Ontario).
- **Rule 25.06(1):** "Every pleading shall contain a concise statement of the material facts on which the party relies for the claim or defence, but not the evidence by which those facts are to be proved."
- **Rule 25.06(8):** Where the pleading alleges fraud, misrepresentation, breach of trust, malice or intent, the pleading must "contain full particulars" - the bare allegation is insufficient.
- **Rule 25.06(9):** Punitive, aggravated, or exemplary damages must be specifically pleaded - referenced in *Whiten v Pilot Insurance*, [2002] 1 SCR 595.

Whiten v Pilot Insurance Co, [2002] 1 SCR 595, 2002 SCC 18

Facts: Pilot Insurance denied the Whitens' fire insurance claim in bad faith - knowing the claim was valid but manufacturing a defence (allegations of arson by the homeowner) to coerce a low settlement. The trial jury awarded \$1 million in punitive damages.

Held (Binnie J., majority 6-1): \$1 million punitive award upheld. The case sets out the principles for pleading and proving punitive damages in Canada.

Pleading requirements (paras 84–92, syllabus reading): Punitive damages must be specifically pleaded with sufficient particulars - "the defendant should know the case it has to meet." The pleading should set out the factual basis for asserting that the defendant's conduct was "so malicious, oppressive, and high-handed that it offends the court's sense of decency."

Substantive standard: Punitive damages are exceptional. Available where the defendant's conduct is a "marked departure from ordinary standards of decent behaviour." Required: an independent actionable wrong (here, breach of the duty of good faith in the insurance contract); the rational quantum; and proportionality to the harm caused, the degree of misconduct, and other compensation already received.

Significance for Civil Procedure: *Whiten* governs how punitive damages are pleaded under Rule 25.06(9). The case is required reading at paras 1–4, 84–92, and 141–142 in the syllabus and exemplifies the requirement of "full particulars" for serious allegations under Rule 25.06(8).

4.4 Particulars and Sufficiency of Pleadings

Pleadings must give the opposing party fair notice of the case to be met. Lack of particulars can be cured by motion under Rule 25.10 (request for particulars) or Rule 21.01(1)(b) (motion to strike for no reasonable cause of action).

Copland v Commodore Business Machines Ltd (1985), 52 OR (2d) 586 (Master)

Significance: Classic Master's decision on the role of particulars. Pleadings must contain sufficient material facts to allow the defendant to know the case to be met. Bare conclusions of law ("the defendant was negligent," "the defendant breached the contract") without supporting material facts are insufficient. The plaintiff must plead the duty, the breach, and the causation in concise but specific terms. Particulars (Rule 25.10) may be ordered where the pleading is insufficient.

Moosa v Hill Property Management Group Inc, 2010 ONSC 553 (Master)

Held: Pleadings must give particulars sufficient to allow the opposing party to plead in response. The court can order particulars where the pleading is insufficient and may strike pleadings under Rule 21.01(1)(b) where no amount of particularising would cure the defect. The decision (paras 1–7, 101–117 in the syllabus reading) covers both the requirement to plead material facts and the limits on bald allegations of fraud and dishonesty.

4.5 Statement of Defence and Reply

Once served with a statement of claim, the defendant has time to respond:

- **Rule 18.01:** Twenty days to file a statement of defence if served in Ontario; forty days if served elsewhere in Canada or in the United States; sixty days if served outside Canada and the United States.
- **Rule 18.02:** A defendant may serve a notice of intent to defend within the defence period; this extends the time for defence by ten days.
- **Rule 25.04:** The plaintiff may file a reply within ten days of service of the statement of defence (used to plead matters in confession and avoidance, e.g., new facts that take the case out of a limitation defence).
- **Rule 25.07(4):** A failure to plead a fact is deemed an admission.

4.6 Counterclaims, Crossclaims, and Third Party Claims

Type	Substance
Counterclaim - Rule 27	Defendant's claim against the plaintiff (or against the plaintiff and an additional party). Must arise from the same transaction or series. Filed as part of the statement of defence (statement of defence and counterclaim). Plaintiff replies with a defence to counterclaim within 20 days.
Crossclaim - Rule 28	Defendant's claim against another defendant (e.g., for contribution and indemnity under the Negligence Act, RSO 1990, c N.1, s 1). Filed within the statement of defence. The crossclaiming defendant may seek contribution where they would otherwise be jointly and severally liable.
Third Party Claim - Rule	Defendant's claim against a non-party (a person not previously

Type	Substance
29	sued by the plaintiff) for contribution, indemnity, related relief, or for a determination of an issue between the defendant and the third party that should properly be tried with the main action. The defendant becomes a third party plaintiff; the new party is the third party defendant.

4.7 Joinder of Claims and Proceedings

Rule 5 allows joinder of multiple causes of action between the same parties (Rule 5.01); Rule 6 governs the joining of separate proceedings or the consolidation of one proceeding with another (Rule 6.01). The court may also order separate trials of joined claims if joint trial would cause prejudice (Rule 6.01(1.1)). Two distinct causes of action and two different plaintiffs may be joined in one statement of claim where they share a common question of law or fact and arise from the same transaction or series - see Rule 5.02. The official 2022 sample exam Q5(g) tests this rule directly.

4.8 Procedure Tracks

Track	Application
Ordinary procedure	Default. All civil actions in the Superior Court of Justice over \$200,000 (or seeking equitable relief, declaratory relief, or relief not capable of monetary valuation). Full pleadings, full discovery rights, full trial.
Simplified procedure - Rule 76	Mandatory for actions where the only claims are for money, real property, or personal property and the amount is up to \$200,000 (raised from \$100,000 effective January 1, 2020 by O Reg 344/19). Streamlined: limited discovery (Rule 76.04), limited trial mechanisms, no jury (Rule 76.02.1), restricted costs.
Small Claims Court	Up to \$50,000 (O Reg 626/00, s 1, as amended; raised from \$35,000 effective October 1, 2025). Distinct rules (Small Claims Court Rules), informal hearings, deputy judges, no examinations for discovery.

4.9 Venue

Rule 13.1.01 provides the rules for selecting a place of trial. Ontario is a single province for jurisdictional purposes, but actions are commenced in a particular county/region for case-management efficiency. The plaintiff selects the venue at commencement (Rule 13.1.01); the defendant may move to change venue under Rule 13.1.02 (e.g., if a more convenient forum exists). The court has discretion to transfer.

⚠ EXAM TIP - PLEADINGS - APPLY THE RULE 25.06 LADDER

(1) Material facts not evidence: Plead the operative facts that ground the cause of action; not the evidence by which they will be proved (Rule 25.06(1)).

(2) Full particulars for serious allegations: Fraud, misrepresentation, breach of trust, malice, intent - all require full particulars (Rule 25.06(8)). "The defendant defrauded the plaintiff" without specifying who, when, what was said, and what was relied upon will be struck.

(3) Punitive/aggravated damages must be specifically pleaded: Rule 25.06(9); Whiten.

(4) Specific allegation of conviction: If relying on a conviction in a related criminal or regulatory proceeding (Rule 25.06(11)).

(5) Statutes relied upon: Identify statutory provisions by name and section (Rule 25.06(7)).

Chapter 5: Class Proceedings

Class proceedings are a procedural mechanism that allows one or more representative plaintiffs to bring a claim on behalf of a defined class of similarly situated persons. They are designed to advance three objectives identified in *Hollick v Toronto*: judicial economy, access to justice, and behaviour modification. Ontario was Canada's first common-law province to enact comprehensive class actions legislation (the Class Proceedings Act, 1992, SO 1992, c 6) and has the most developed body of class proceedings jurisprudence in Canada.

5.1 Statutory Framework

The principal statute is the Class Proceedings Act, 1992 (CPA), substantially amended by the Smarter and Stronger Justice Act, 2020 (Bill 161), in force October 1, 2020. The Bill 161 reforms apply only to class proceedings commenced on or after October 1, 2020 - pre-2020 actions are governed by the unamended CPA. This is a critical exam trap: identify the commencement date before applying the Bill 161 changes.

Other relevant sources: Rule 12 (representative proceedings, distinct from class proceedings); O Reg 771/92; the Law Society Act, RSO 1990, c L.8, ss 52, 55(1), 59.1–59.5 (Class Proceedings Fund - funding for representative plaintiffs); the Crown Liability and Proceedings Act, 2019 (special rules for class proceedings against the Crown).

5.2 The Five Certification Criteria - CPA s 5(1)

The court "shall certify" a class proceeding if the five certification criteria are met. The standard of proof for each criterion is "some basis in fact" - not a determination on the merits, but more than mere assertion (*Hollick*).

Criterion	What it Requires
s 5(1)(a) - Reasonable cause of action	The pleadings must disclose a reasonable cause of action. The same test as a Rule 21 motion to strike: it must be "plain and obvious" that the claim has no reasonable prospect of success (<i>Hollick</i> at para 25; <i>R v Imperial Tobacco</i> , 2011 SCC 42). Determined on the pleadings alone, no evidence.
s 5(1)(b) - Identifiable class	There must be an identifiable class of two or more persons. The class must be defined by objective criteria, without reference to the merits, and in a way that allows determination of membership without an individualised inquiry. Class definitions tied to merits ("all persons damaged by the defendant's negligence") fail.
s 5(1)(c) - Common issues	The claims of the class members must raise common issues. An issue is common where its resolution is necessary to the resolution of each class member's claim - there must be a rational connection between the class as defined and the proposed common issue. Some basis in fact required for the existence of the issue (not the merits).

Criterion	What it Requires
s 5(1)(d) - Preferable procedure	A class proceeding must be the preferable procedure for the resolution of the common issues. Pre-2020, this was a flexible analysis through the lens of the three Hollick goals (judicial economy, access to justice, behaviour modification). Post-2020, s 5(1.1) imposes a stricter superiority + predominance test (see 5.4 below).
s 5(1)(e) - Appropriate representative plaintiff	The representative plaintiff must (i) fairly and adequately represent the class interests; (ii) produce a workable plan for the proceeding; and (iii) not have an interest in conflict with other class members on the common issues.

Hollick v Toronto (City), 2001 SCC 68, [2001] 3 SCR 158

Facts: Hollick sought to certify a class action on behalf of approximately 30,000 residents in the vicinity of the Keele Valley landfill, complaining of noise and air pollution. Motion judge certified; Divisional Court overturned; Court of Appeal affirmed denial.

Held (McLachlin CJ, unanimous): Certification denied (preferable procedure failed).

The cornerstone principles: (i) The CPA "should be construed generously to give full effect to its benefits." (ii) The five criteria must each be supported by "some basis in fact" - not a merits inquiry, but more than mere assertion. (iii) The preferable procedure analysis is "conducted through the lens of the three principal advantages of class actions: judicial economy, access to justice, and behaviour modification." (iv) The s 5(1)(a) cause of action test is the same as the Rule 21 "plain and obvious" test.

Significance: Hollick is the foundational Canadian class proceedings case. Every certification motion in every common-law province cites it as the framework. It remains good law subject only to the post-2020 Bill 161 amendments to s 5(1)(d) discussed below.

Western Canadian Shopping Centres Inc v Dutton, 2001 SCC 46, [2001] 2 SCR 534

Held (McLachlin CJ, unanimous): Established the principles for class proceedings at common law (in jurisdictions without legislation). Companion case to Hollick. The class proceeding is a procedural mechanism, not a substantive right; its availability does not depend on the existence of legislation. Confirmed that representative proceedings can be brought as a matter of inherent jurisdiction where: (i) the class is capable of clear definition; (ii) common issues exist; (iii) success for one would mean success for all; and (iv) the class representative adequately represents the class.

Rumley v British Columbia, 2001 SCC 69, [2001] 3 SCR 184

Facts: Class proceeding by former students of a residential school for the deaf alleging systemic abuse and negligent supervision over decades.

Held (McLachlin CJ, unanimous): Certification granted. The case demonstrates that systemic claims with significant individual variations can still be certified where common issues capable of meaningful class-wide resolution can be identified - here, the systemic negligence of the institution and the institutional knowledge of abuse. Certified common issues need not resolve

the entire claim; partial determination of common issues that meaningfully advances individual claims is sufficient.

5.3 Preferable Procedure - Pre-2020 Framework (still applies to actions commenced before October 1, 2020)

AIC Limited v Fischer, 2013 SCC 69, [2013] 3 SCR 949

Facts: Investors in mutual funds sought to certify a class action against fund managers for permitting "market timing" practices. The OSC had already conducted regulatory proceedings and obtained settlement payments to investors. The defendants argued the OSC settlement made the class proceeding unnecessary.

Held (Cromwell J., unanimous): Certification granted. Set out the access-to-justice analysis for preferable procedure (s 5(1)(d) under the pre-2020 CPA).

The two-step access to justice analysis: (1) Are there access to justice concerns the class action could address? (2) Do those concerns remain when alternative avenues of redress (regulatory proceedings, tribunals, joinder, individual actions) are considered? Both procedural and substantive components are relevant - the procedural component asks whether the alternative provides a fair process; the substantive component asks whether the alternative provides a just and effective remedy.

Five questions to inform the analysis: (i) What are the barriers to access? (ii) What is the potential of the class action to address them? (iii) What are the alternatives? (iv) To what extent do the alternatives address the barriers? (v) How do the two compare? The answer must consider whether the alternative offers similar access; if not, the class action remains preferable.

Significance: Fischer remains the leading SCC decision on preferable procedure. The 2020 Bill 161 amendments add a stricter superiority + predominance overlay but do not displace Fischer's access-to-justice analysis as one of the inputs into the broader preferability question.

5.4 Preferable Procedure - Post-2020 Framework (Bill 161, in force October 1, 2020)

The Smarter and Stronger Justice Act, 2020 added s 5(1.1) to the CPA, creating a stricter "at a minimum" requirement for the preferable procedure analysis:

CPA s 5(1.1) - the new statutory text

"A class proceeding is the preferable procedure for the resolution of common issues under clause (1)(d) only if, at a minimum,

(a) it is superior to all reasonably available means of determining the entitlement of the class members to relief or addressing the impugned conduct of the defendant, including, but not limited to, a quasi-judicial or administrative proceeding, the case management of individual claims in a civil proceeding, or any remedial scheme or program outside of a proceeding; and

(b) the questions of fact or law common to the class members predominate over any questions affecting only individual class members."

Effect: Two new mandatory pre-conditions to preferability - superiority and predominance. The

court must find both before considering the broader Hollick/Fischer access-to-justice framework. Where individual issues predominate over common issues (e.g., highly individualised personal-injury actions, complex causation), the proceeding cannot be certified even if access-to-justice concerns are real.

First detailed interpretation: *Banman v Ontario*, 2023 ONSC 6187 - class action by 429 former patients of a psychiatric hospital. Justice Perell certified, finding common issues predominated despite the need for individual issues trials, because the individual claims would never be brought standalone (economically infeasible) and the class proceeding was the only viable route to access to justice for the class members.

5.5 Settlement, Costs, and Funding

- **Settlement approval - CPA s 27.1:** All class proceeding settlements require court approval. The court must be satisfied the settlement is fair, reasonable, and in the best interests of the class.
- **Costs - CPA s 31:** In a class proceeding, costs are awarded under modified rules. The court has broader discretion than in ordinary proceedings, and costs may be awarded against funders rather than the representative plaintiff personally.
- **Class Proceedings Fund - Law Society Act ss 59.1–59.5:** Statutory fund administered by the Law Foundation of Ontario; provides financial assistance to representative plaintiffs in approved class proceedings (covers disbursements; takes 10% of any award or settlement as a levy).
- **Third-party funding:** Increasingly common; requires court approval in class proceedings (see *Houle v St Jude Medical*, 2017 ONSC 5129 - funding agreements must protect the class's interests).

5.6 Multi-Jurisdictional Class Proceedings

The 2020 Bill 161 reforms also added provisions (CPA ss 5.1–5.2) requiring the Ontario court to consider whether a similar class proceeding is pending in another Canadian jurisdiction, and to coordinate with the courts of those jurisdictions. This was intended to address the long-standing problem of overlapping multi-jurisdictional class actions and aligns Ontario with similar provisions in Alberta, British Columbia, and Saskatchewan.

5.7 Mandatory Dismissal for Delay - CPA s 29.1

Bill 161 added a mandatory dismissal provision: a class proceeding will be dismissed if, within one year of commencement, the representative plaintiff has not filed a final certification motion record, agreed in writing to a timetable filed with the court, or obtained a court order with a timetable. Unlike most other Bill 161 changes, the dismissal-for-delay provision applies to existing proceedings (from the date the amendments came into force, October 1, 2020). This changed the landscape for slow-moving class actions.

5.8 Recent Application: *Heller v Uber Technologies*

Heller v Uber Technologies Inc, 2021 ONSC 5518 illustrates post-2020 application. The certification proceedings (which followed the Supreme Court's 2020 decision finding Uber's arbitration clause unconscionable - see Chapter 8) confronted the new s 5(1.1) test in the context of a putative employment-status class. Justice Belobaba certified, finding the predominance and superiority requirements met given the systemic question of employment classification under Ontario's Employment Standards Act and the impossibility of the affected drivers asserting individual claims.

⚠ EXAM TIP - CLASS PROCEEDINGS - IDENTIFY THE COMMENCEMENT DATE FIRST

Before applying Hollick, Fischer, or s 5(1.1), determine when the proceeding was commenced. Pre-October 1, 2020: the unamended CPA applies; preferability is a Hollick/Fischer access-to-justice analysis. Post-October 1, 2020: s 5(1.1) requires superiority and predominance, in addition to Hollick's three goals. The commencement date is the single most important fact in any class certification question.

Chapter 6: Jurisdiction and Service

Jurisdiction in civil procedure has two dimensions: jurisdiction simpliciter (whether the court has the authority to take cognisance of the dispute), and forum non conveniens (whether, even if jurisdiction simpliciter exists, the court should decline jurisdiction in favour of a clearly more appropriate forum elsewhere). Service governs how the originating process is delivered to the defendant - both within Ontario and outside Canada.

6.1 Subject-Matter Jurisdiction

Ontario's Superior Court of Justice is a court of inherent jurisdiction (CJA s 11(2)) - it has plenary authority over all civil disputes unless the legislature has expressly assigned the dispute to another forum (e.g., the Federal Court, the Landlord and Tenant Board, or the Human Rights Tribunal of Ontario). This makes the SCJ the default forum for nearly all private civil disputes in Ontario, and is why most NCA Civil Procedure questions are framed in the SCJ.

6.2 Territorial Jurisdiction (Jurisdiction Simpliciter)

Even when a court has subject-matter jurisdiction, it must also have territorial jurisdiction over the dispute and the parties. The leading Canadian authority is *Van Breda*.

Club Resorts Ltd v Van Breda, 2012 SCC 17, [2012] 1 SCR 572

Facts: Two Canadians were injured at a Cuban resort. They sued in Ontario, naming (among others) Club Resorts Ltd, a Cayman Islands company that managed the hotel. Club Resorts moved to dismiss for lack of jurisdiction or, alternatively, on forum non conveniens grounds.

Held (LeBel J., unanimous on the framework): Ontario had jurisdiction. The court set out a definitive two-stage test for jurisdiction simpliciter.

Stage 1 - Presumptive connecting factors: The plaintiff must identify a "presumptive connecting factor" linking the subject matter of the litigation to the forum. In tort cases, the four recognised presumptive factors are:

- (a) The defendant is domiciled or resident in the province;
- (b) The defendant carries on business in the province (requires actual, not virtual, presence);
- (c) The tort was committed in the province;
- (d) A contract connected with the dispute was made in the province.

Stage 2 - Rebuttal: If a presumptive connecting factor is established, jurisdiction exists unless the defendant rebuts it by showing that the factor does not, in the circumstances of the case, point to a real relationship between the dispute and the forum.

Forum non conveniens: A separate, discretionary inquiry. Once jurisdiction simpliciter is established, the defendant may argue that another forum is clearly more appropriate. The defendant bears the burden. Factors include: location of parties, location of witnesses, applicable law, prior parallel proceedings, the possibility of conflicting judgments, juridical advantage, and recognition and enforcement issues.

On the facts: A contract entered into in Ontario between Mr Berg (Van Breda's husband) and SuperClubs Cuba (a related company) was a presumptive connecting factor; the presumption

was not rebutted; Cuba was not clearly more appropriate. Ontario had jurisdiction.

MEMORY HOOK - DCBS - the four Van Breda factors

Domiciled or resident; Carries on business in province; "Beach" - tort committed in the province; Signed in Ontario - contract connected with the dispute was made in the province.

6.3 Recent Refinement: Sinclair v Venezia Turismo, 2025 SCC 27

In 2025, the Supreme Court revisited the fourth Van Breda factor (contract connected with the dispute) in *Sinclair v Venezia Turismo*, 2025 SCC 27, narrowing its application. The case involved a serious water-taxi accident in Venice in which an Ontario resident, Mr. Sinclair, was injured while travelling with his family on a holiday booked through Amex Canada's Centurion Travel Service. The Sinclairs sought to establish Ontario jurisdiction over the Italian water-taxi operators (Venezia Turismo, Venice Limousine S.R.L., and the driver) on the basis of their Centurion cardmember agreement made in Ontario. The Supreme Court, in a 5–4 decision (Côté J. for the majority, Jamal J. dissenting), held: (i) jurisdiction must be assessed in relation to each defendant separately - jurisdiction over one defendant does not extend to others, and there is to be no "bootstrapping" off another defendant's attornment; (ii) although the cardmember agreement was an Ontario contract sufficient to satisfy the first stage, the connection between that contract and the dispute (the boat crash in Italy) was "tenuous, if not non-existent"; (iii) the Italian defendants successfully rebutted the presumption at stage two of Van Breda because they were not parties to the cardmember agreement and could not reasonably have expected to be sued in Ontario. The decision reinforces the two-stage Van Breda analysis and breathes life into the rebuttal stage as a meaningful gate against jurisdictional overreach.

6.4 Lapointe Rosenstein Refinement

Lapointe Rosenstein Marchand Melançon LLP v Cassels Brock & Blackwell LLP, 2016 SCC 30

Held (majority 7–2, Côté J. dissenting): Refining the fourth Van Breda factor - for the contract to be "connected" with the dispute, it is sufficient that the dispute "flows from" the relationship created by the contract. The dispute need not arise immediately from the contractual obligations themselves. Cassels Brock represented Quebec automobile dealers in litigation against GM Canada; the relationship was contractual; the related professional liability claim was held to flow from the relationship and to satisfy factor (d). *Sinclair v Venezia Turismo* (2025) has since narrowed *Lapointe Rosenstein*, treating it as a fact-dependent application rather than an expansion of the fourth factor.

6.5 Forum Non Conveniens

Even when jurisdiction simpliciter is established, the defendant may move (at the outset of the action, before pleading) for a stay on forum non conveniens grounds. The defendant must establish that another forum is clearly more appropriate - the standard is high; mere

inconvenience is insufficient. Van Breda lists the relevant factors at paras 105–109. Forum selection clauses in contracts are governed by the Pompey two-step test (Z.I. Pompey Industrie v ECU-Line N.V., 2003 SCC 27): (i) is the clause valid, clear, and enforceable? (ii) is there strong cause not to enforce it? Douez v Facebook, Inc, 2017 SCC 33 applied this test in the consumer context and found Facebook's California forum-selection clause unenforceable on grounds of inequality of bargaining power and public policy (privacy of consumers in BC).

6.6 Service Within Ontario

Once jurisdiction is established, the originating process must be served on the defendant. Rule 16 governs service:

- **Rule 16.01:** Originating processes must be served personally unless the Rules expressly provide otherwise. Personal service involves leaving the document with the named person.
- **Rule 16.02:** Means of personal service: (i) on an individual - leave the document with the individual; (ii) on a corporation - leave with an officer, director, or agent at the corporation's place of business; (iii) on a partnership - leave with any partner or person in apparent control; (iv) on the Crown - service on the Attorney General.
- **Rule 16.03:** Alternative to personal service: (a) service at place of residence by leaving with a person who appears to be at least 16; (b) acceptance of service by the lawyer; (c) service by mail or courier with acknowledgment of receipt.
- **Rule 16.04:** Substituted service - by court order where regular service is impractical.
- **Other documents:** Pleadings (other than originating processes), motions, and other interlocutory documents can be served by mail, fax, or email under Rule 16.05 - service by email is now widely accepted (Rule 16.05(1)(g.1)).

6.7 Service Outside Ontario

Rule 17 governs service outside Ontario. Two routes:

- **Rule 17.02 - Service Without Leave:** Service is permitted without leave in a list of enumerated circumstances closely tracking the Van Breda presumptive connecting factors - e.g., where the proceeding consists of a claim for damages for tort committed in Ontario (r 17.02(g)), claim relating to a contract made in Ontario (r 17.02(f)), or against a person carrying on business in Ontario (r 17.02(p)). The plaintiff identifies the relevant subrule on the originating process.
- **Rule 17.03 - Service With Leave:** Where Rule 17.02 does not apply, the plaintiff must obtain leave to serve outside Ontario. The court applies the Van Breda framework to determine whether to grant leave.
- **Hague Service Convention:** Where the foreign jurisdiction is a signatory, service must follow the Convention's procedures (typically through the foreign country's central authority).

⚠ EXAM TIP - JURISDICTION - APPLY THE TWO-STAGE VAN BREDA TEST

Stage 1: Identify whether any of the four DCBS factors is present (Domiciled, Carries on

business, "Beach" tort committed in province, Signed in Ontario contract). For each defendant separately.

Stage 2: If a factor is established, ask whether the defendant has rebutted the presumption by showing the factor does not, in this case, point to a real relationship. *Sinclair v Venezia Turismo* (2025) gives this stage real bite - a tenuous connection will be rebutted.

Then forum non conveniens (separate analysis): If jurisdiction is established, did the defendant move within reasonable time, and is another forum clearly more appropriate? Burden on defendant.

Chapter 7: Discovery, Evidence, and Experts

Discovery is the largest single topic on the NCA Civil Procedure syllabus. It is also the procedural mechanism most often tested on the exam (Q3 of the official 2022 sample exam was a 20-mark discovery question). Discovery serves four purposes: (1) disclose the documents and information held by each side; (2) narrow the issues by identifying matters not in dispute; (3) fix the parties' versions of events as a basis for cross-examination at trial; and (4) provide the evidentiary foundation for summary disposition motions (Rule 20).

7.1 The Two Phases of Discovery

Ontario discovery has two phases: documentary discovery (Rule 30) and oral discovery (Rule 31). Both are governed by an overarching duty of relevance and proportionality (Rules 1.04(1.1), 29.2).

7.2 Documentary Discovery - Rule 30

- **Rule 30.02(1):** "Every document relating to any matter in issue in an action that is or has been in the possession, control, or power of a party to the action shall be disclosed as provided in rules 30.03 to 30.10, whether or not privilege is claimed in respect of the document." The relevance threshold is broad: any document that may directly or indirectly enable a party to advance its case or to damage the opponent's case.
- **Rule 30.03 - Affidavit of Documents:** Each party must serve an affidavit of documents listing all relevant documents in three schedules: Schedule A (documents in possession; not privileged), Schedule B (privileged documents; described generally), Schedule C (documents formerly in possession; not privileged but no longer in the party's hands). Form 30A or 30B.
- **Rule 30.04 - Inspection of Documents:** Once an affidavit of documents is served, the opposing party may inspect the documents listed in Schedule A. Privileged documents (Schedule B) are not produced for inspection.
- **Rule 30.06 - Where Affidavit Incomplete:** Where the affidavit is incomplete or where there is reason to believe relevant documents have been omitted, the court may order a further and better affidavit, production, or other relief.
- **Rule 30.07 - Continuing Duty:** The duty to disclose is continuing - a party who learns of additional relevant documents after serving the affidavit must update by way of supplementary affidavit.

7.3 The Deemed Undertaking - Rule 30.1

Information and documents obtained through the discovery process may be used only for the proceedings in which they were obtained. Rule 30.1 codifies this deemed undertaking: "A party shall not use evidence or information obtained on examination for discovery, on a deposition, on cross-examination on an affidavit, or on inspection of documents... except for the purposes of the proceeding in which the evidence or information was obtained."

Breach of the deemed undertaking is a contempt of court. Exceptions: (i) where the document or information has been filed with the court or referred to in open court (Rule 30.1.01(4)); (ii) where the parties consent; (iii) where the court grants leave (Rule 30.1.01(8)) - for example, to use information in a related proceeding involving the same subject matter where the interests of justice so require.

7.4 Oral Discovery - Rule 31

- **Rule 31.03 - Who May Be Examined:** Each party is entitled to examine each other party. A corporate party is examined through one representative (Rule 31.03(2)) - only one, absent a court order; the choice is the corporation's. Other employees may be examined only with leave (Rule 31.10).
- **Rule 31.05.1 - Time Limit:** In an action governed by the ordinary procedure, no examining party shall conduct oral examinations for discovery exceeding a total of seven hours, regardless of the number of parties or other persons to be examined, except with the consent of the parties or with leave of the court (Rule 31.05.1(1)). The 7-hour cap is therefore a global allowance for the examining party, not a per-witness allotment. The Hryniak proportionality principle applies on any motion to extend.
- **Rule 31.06 - Scope of Examination:** The examiner is entitled to ask any question "relevant to any matter in issue." The party answering must inform him or herself before the examination from the records and the knowledge of any present or former employees, officers, agents, or representatives.
- **Rule 31.07 - Refusal to Answer:** A witness may refuse to answer a question only on grounds of relevance, privilege, or that the question was abusive. Improper refusals can be punished on a motion to compel.
- **Rule 31.10 - Examination of Non-Parties:** With leave, a party may examine a non-party who has information relevant to a material issue. Test: (a) the moving party has been unable to obtain the information from other sources after reasonable inquiry; (b) it would be unfair to the moving party to proceed to trial without the opportunity to examine; (c) the examination will not unduly delay the proceeding, entail unreasonable expense, or result in unfairness to the witness.

7.5 Discovery Plans and Proportionality - Rules 29.1 and 29.2

Rule 29.1 requires the parties to a proceeding to agree on a discovery plan - a document setting out the scope and timing of documentary and oral discovery. The discovery plan must be agreed before the first examination for discovery and must be in writing. Where parties cannot agree, the court will impose a plan.

Rule 29.2 sets out the proportionality factors that govern the scope of discovery: (a) the nature and complexity of the issues; (b) the importance of the issues; (c) the monetary value at stake; (d) the time and expense involved in obtaining the information; (e) any specific or unusual circumstances. The court may limit discovery (in scope, time, or both) where the costs would be disproportionate.

7.6 Electronic Discovery

Most modern documents are electronic. The Sedona Canada Principles (3rd ed, 2018) - referenced through Rule 29.1.03(4) - provide the framework for electronic discovery in Canada. Key principles: (i) parties should cooperate to identify and exchange relevant electronically stored information; (ii) the producing party may use reasonable methods (search terms, technology-assisted review) to identify responsive documents; (iii) the parties should agree on the format of production (native format with metadata is preferred); (iv) reasonable measures must be taken to preserve potentially relevant electronically stored information once litigation is reasonably anticipated.

7.7 Privileges

Not every relevant document is producible. Privilege protects confidential communications and information from disclosure. Five major privileges arise in Canadian civil procedure: solicitor-client privilege, litigation privilege, settlement privilege, the public-safety exception, and case-by-case privilege under the Wigmore framework.

(a) Solicitor-Client Privilege

Pritchard v Ontario (Human Rights Commission), 2004 SCC 31, [2004] 1 SCR 809

Facts: Pritchard sought disclosure of legal advice given to the Ontario Human Rights Commission by its in-house counsel.

Held (Major J., unanimous): Solicitor-client privilege applies to in-house government counsel. The privilege is a near-absolute one: it can only be displaced in narrowly defined circumstances (innocence at stake; clear statutory abrogation; public safety exception). The fact that the lawyer is salaried by the client (or paid out of public funds) is irrelevant - what matters is that the communication was for the purpose of obtaining or giving legal advice.

Canada (Privacy Commissioner) v Blood Tribe Department of Health, 2008 SCC 44, [2008] 2 SCR 574

Held (Binnie J., unanimous): Solicitor-client privilege cannot be abrogated by inference from general statutory language. The Privacy Commissioner's general statutory power to compel production of documents under PIPEDA was not sufficiently clear to displace solicitor-client privilege. Statutory abrogation of solicitor-client privilege requires "clear, explicit, and unequivocal" language.

Smith v Jones, [1999] 1 SCR 455

Facts: A psychiatrist retained by defence counsel for an accused sex offender concluded that the accused posed a serious risk of future violence to identifiable groups. The psychiatrist sought to disclose the assessment despite solicitor-client privilege attaching to it.

Held (Cory J., majority): The public safety exception permits disclosure of solicitor-client privileged communications. Three-factor test for the exception:

(1) Clear risk to an identifiable person or group of persons;

- (2) Serious risk of bodily harm or death;
- (3) The danger is imminent.

Effect: Public safety can override even solicitor-client privilege, but only in narrow circumstances.

(b) Litigation Privilege

Blank v Canada (Minister of Justice), 2006 SCC 39, [2006] 2 SCR 319

Held (Fish J., majority): Litigation privilege is distinct from solicitor-client privilege. It protects communications and documents prepared with the dominant purpose of preparing for or defending litigation that is reasonably anticipated, contemplated, or in progress. Litigation privilege ENDS when the litigation (or closely related litigation) ends - unlike solicitor-client privilege, which is permanent. The dominant purpose test is the standard.

Lizotte v Aviva Insurance Company of Canada, 2016 SCC 52, [2016] 2 SCR 521

Held (Gascon J., unanimous): Litigation privilege is a class privilege - a fundamental rule of evidence and procedure protected at common law. It is not a mere case-by-case privilege subject to balancing. Like solicitor-client privilege, it can only be abrogated by statute through clear, explicit, and unequivocal language. The Quebec Office of the Syndic of the Chambre de l'assurance de dommages could not compel production of an insurance investigation file even with broad statutory powers, because the language was insufficient to displace litigation privilege.

(c) Settlement Privilege

Union Carbide Canada Inc v Bombardier Inc, 2014 SCC 35, [2014] 1 SCR 800

Held (Wagner J., unanimous): Settlement privilege protects communications made with a view to settling a dispute. The privilege encourages frank discussion. The parties may, however, contract out of settlement privilege through enhanced confidentiality clauses (e.g., a private mediation agreement that goes further than the default rule). Where the parties have contracted out, the contractual terms govern. Where they have not, the common-law privilege presumptively applies.

(d) Case-by-Case Privilege - The Wigmore Test

AM v Ryan, [1997] 1 SCR 157

Held (McLachlin J., majority): Case-by-case privilege may attach to confidential communications outside the recognised classes (solicitor-client, litigation, settlement) where the four-part Wigmore test is met:

- (1) The communications must originate in confidence that they will not be disclosed.
- (2) Confidentiality must be essential to the maintenance of the relationship between the parties.
- (3) The relationship must be one which the community considers ought to be sedulously fostered.
- (4) The injury that disclosure would cause to the relationship must be greater than the benefit of

correct judicial disposition.

Application: The plaintiff sued her former psychiatrist for sexual assault and sought damages for resulting trauma. Her records of treatment with a subsequent therapist met all four Wigmore factors and were privileged from disclosure to the defendant in the civil action.

7.8 Medical Examinations and Experts

Where the physical or mental condition of a party is in issue, Rule 33 governs medical examinations. The court may order a defence medical examination on motion (Rule 33.01) where reasonable. The opposing expert prepares a report, and the report is producible (Rule 33.06).

Expert evidence is governed by Rules 4.1 and 53.03. Rule 4.1.01 imposes a duty on every expert to provide "fair, objective, and non-partisan" opinion evidence and to assist the court - not the party retaining them. Rule 53.03 requires expert reports to be served at least 90 days before the pre-trial conference (or as ordered) and to comply with detailed content requirements (basis for the opinion, instructions received, methodology, qualifications). Form 53 - the expert's acknowledgment of the duty - must be signed and served. The leading authority on the duty is *White Burgess Langille Inman v Abbott and Haliburton Co*, 2015 SCC 23.

⚠ EXAM TIP - DISCOVERY - APPLY THE LADDER

(1) Relevance: Is the document or information relevant to a matter in issue (Rule 30.02(1) for documents, Rule 31.06 for oral discovery)? Broad scope but bounded by pleadings.

(2) Possession, control, or power: Is the document in the party's possession, control, or power? Includes documents in the hands of agents, related corporate entities, and former employees who held the document for the corporation.

(3) Privilege: Is the document protected by solicitor-client (near-absolute), litigation (terminates with the litigation), settlement (*Union Carbide*), or Wigmore (case-by-case) privilege? Does the public-safety exception (*Smith v Jones*) apply?

(4) Proportionality: Even if relevant, is the production proportionate (Rule 29.2)? The court may limit scope, format, or timing.

(5) Deemed undertaking: If the document is produced, the receiving party can use it only for this proceeding (Rule 30.1).

Chapter 8: Case Management, Pre-Trial Conferences, and ADR

Modern civil procedure recognises that not every dispute belongs in a courtroom and that even disputes that do should be actively managed by the court rather than left to the rhythm of the parties. Case management, mandatory mediation, pre-trial conferences, and arbitration agreements together provide multiple points at which a dispute can be steered, narrowed, or resolved without a full trial. The official 2022 NCA sample exam Q2 ("consensually-based dispute resolution") tests this chapter directly.

8.1 Case Management - Rule 77

Case management is a system in which a designated judge or associate judge actively supervises a proceeding from commencement to disposition. Rule 77 establishes case management for civil proceedings on the Toronto, Ottawa, and Windsor civil lists. The case management judge may set timetables, schedule mandatory mediation (Rule 24.1), order pre-trial conferences, hear interlocutory motions, and direct alternative dispute resolution. The objective is proportionality (Rule 1.04(1.1)) - moving cases efficiently while ensuring fair adjudication.

Outside Rule 77 jurisdictions, case management may still be ordered on motion or by agreement. Most complex proceedings (class proceedings under the CPA, oppression remedies, multi-party tort claims) are placed under active case management to avoid drift.

8.2 Mandatory Mediation - Rule 24.1

Rule 24.1 imposes mandatory mediation on civil proceedings (other than family law and certain enumerated exceptions) commenced in Toronto, Ottawa, and Windsor. Key features:

- **Rule 24.1.05:** Mediation must occur within 180 days after the first defence is filed, unless the court orders otherwise.
- **Rule 24.1.07:** Parties select a mediator from the roster of approved mediators (or by agreement).
- **Rule 24.1.10:** Each party must serve a mediation brief at least seven days before the mediation, identifying the issues and positions.
- **Rule 24.1.14:** Mediation is non-binding - parties may litigate to trial if mediation fails. Settlement privilege protects communications during mediation (Union Carbide, 2014 SCC 35).
- **Rule 24.1.15:** Failure to attend mediation can result in costs sanctions, dismissal of the action, or striking of the defence.

8.3 Pre-Trial Conferences - Rule 50

A pre-trial conference is mandatory before trial in nearly all civil actions (Rule 50.02). Purposes (Rule 50.04): possibility of settlement; simplification of issues; admissions of fact or document; agreement on the use of evidence; estimation of trial length; identification of witnesses and

exhibits. The pre-trial conference judge does not preside at trial (Rule 50.10) so as to enable frank settlement discussions. The pre-trial judge may make orders directing further pleadings, particulars, or the production of documents.

8.4 Court-Annexed and Statutory ADR

- **Commercial Mediation Act, 2010, SO 2010, c 16, Sch 3:** Provides a statutory framework for commercial mediations in Ontario, including provisions on confidentiality, the role of the mediator, and enforcement of mediated settlement agreements.
- **Family law mediation:** Mandatory information sessions and screening for power imbalance under the Family Law Rules - distinct from civil Rule 24.1.
- **Construction Act mediation:** Mandatory adjudication for construction disputes under Part II.1 of the Construction Act.

8.5 Private Arbitration - Arbitration Act, 1991

The Arbitration Act, 1991, SO 1991, c 17 governs domestic arbitrations in Ontario. The corresponding statute for international commercial arbitration is the International Commercial Arbitration Act, 2017.

- **s 6 - Court intervention:** Limited to specific enumerated grounds - assistance with the conduct of the arbitration, ensuring fair process, enforcement of the award.
- **s 7 - Mandatory stay:** If a party commences court proceedings on a matter covered by a valid arbitration agreement, on motion of another party, the court "shall, on the motion of another party to the arbitration agreement, stay the proceeding." Subject to limited exceptions (the agreement is invalid, the matter is not arbitrable, the motion is brought too late, undue delay).
- **s 46 - Setting aside an award:** Limited grounds - invalid agreement, lack of notice, inability to present case, exceeding scope of authority, public policy.

8.6 Limits on Arbitration Clauses

Arbitration clauses in standard-form contracts are not always enforceable. Three Supreme Court decisions establish the limits.

Seidel v TELUS Communications Inc, 2011 SCC 15, [2011] 1 SCR 531

Facts: Class proceeding by BC TELUS subscribers alleging deceptive billing practices. TELUS's standard service contract contained a mandatory arbitration clause and a class-action waiver.

Held (Binnie J., majority 5–4): BC's Business Practices and Consumer Protection Act preserved the consumer's right to commence court proceedings. Statutory rights designed to protect consumers can override private arbitration clauses where the legislature so intends. The court refused to enforce the arbitration clause because the BC statute expressly conferred a non-waivable right to court access for consumer protection actions.

Uber Technologies Inc v Heller, 2020 SCC 16, [2020] 2 SCR 118

Facts: Heller, an Uber driver, sought to commence a class proceeding against Uber for misclassification under Ontario's Employment Standards Act. Uber's terms of service required arbitration under International Chamber of Commerce rules in the Netherlands, with a USD \$14,500 filing fee - well in excess of Heller's annual income from driving for Uber.

Held (Abella and Rowe JJ. for the majority of seven, Brown J. concurring in the result on different grounds, Côté J. dissenting; 8–1 in the result): The arbitration clause was unconscionable and therefore unenforceable. Two-part test for unconscionability:

- (1) Inequality of bargaining power - substantial inequality between the parties (here, Heller had no realistic ability to negotiate; the contract was a standard-form click-through);
- (2) An improvident bargain - the resulting contract is unfair to the weaker party (here, the \$14,500 filing fee made arbitration effectively unavailable; the choice of Netherlands as the forum was prohibitive).

Significance: Uber v Heller is a watershed for the regulation of standard-form arbitration clauses. The case opened the door to the post-Heller class proceeding by drivers seeking employment status under the ESA - see Heller v Uber Technologies, 2021 ONSC 5518 (certification granted).

Douez v Facebook, Inc, 2017 SCC 33 applied the Pompey two-step test to a forum-selection clause in a consumer contract (BC residents' privacy claims against Facebook): the court found the forum-selection clause unenforceable on grounds of inequality of bargaining power and the strong public interest in vindicating the BC Privacy Act in BC courts. Together, Seidel, Uber, and Douez establish that consumer-context arbitration and forum-selection clauses are subject to meaningful judicial scrutiny.

⚠ EXAM TIP - ADR - IDENTIFY THE TYPE BEFORE APPLYING RULES

Step 1: Mandatory mediation under Rule 24.1 (Toronto, Ottawa, Windsor)? If so, the parties must mediate within 180 days of the first defence.

Step 2: Pre-trial conference under Rule 50? Mandatory before trial; the pre-trial judge does not preside.

Step 3: Private arbitration agreement under the Arbitration Act 1991? If valid, the court "shall" stay (s 7) unless an exception applies.

Step 4: If the agreement is in a consumer contract or there is significant inequality of bargaining power, consider unconscionability (Uber v Heller), statutory override (Seidel), or public policy (Douez).

Chapter 9: Motions, Interlocutory Relief, and Injunctions

Motions are the engine of pre-trial litigation. Almost every procedural issue in a contested action is resolved by motion: discovery disputes, requests to amend pleadings, summary judgment, striking pleadings, costs, jury notices, and injunctions are all brought by motion. The official 2022 NCA sample exam Q5(j) tests motion procedure ("Evidence on motions is typically brought by way of affidavit").

9.1 What Is a Motion?

A motion is an application within an existing proceeding for a procedural or interlocutory order. Rule 1.03(1) defines "motion" as "a motion in a proceeding or an intended proceeding." The party bringing the motion is the moving party; the party responding is the responding party (Rule 1.03(1)).

Motions are distinguished from applications: an application is a way of commencing a proceeding (Rule 14.05), while a motion is a step within a proceeding. The procedural framework is similar (notice, affidavit evidence, oral argument), but motions are interlocutory while applications are dispositive of the proceeding.

9.2 Motion Procedure - Rule 37

- **Rule 37.05 - Place of Hearing:** Motions are heard in the county where the action is pending, unless the court orders otherwise.
- **Rule 37.06 - Notice of Motion:** The moving party serves a Notice of Motion in Form 37A specifying the relief sought, the grounds, and the documentary evidence to be relied upon.
- **Rule 37.07 - Service of Notice:** Notice must be served at least seven days before the hearing (or three days for shortened notice motions). Where the motion is on consent or unopposed, shorter notice may be acceptable.
- **Rule 37.10.1 - Motion Records:** The moving party files a motion record at least seven days before the hearing; the responding party files at least four days before.
- **Rule 37.13 - Disposition of Motion:** The court may grant or refuse the relief, adjourn, or direct another procedure (e.g., conversion to oral evidence).

9.3 Who Hears Motions

Most interlocutory motions in Ontario are heard by Associate Judges (formerly called Masters; Rule 1.03(1); CJA s 87) or by judges of the Superior Court of Justice. Associate Judges have jurisdiction over a wide range of procedural matters but cannot hear:

- Final dispositive motions (e.g., summary judgment under Rule 20 if it would dispose of an action, although Associate Judges can hear summary judgment of an issue);
- Charter-related applications;
- Injunctions in most cases (CJA s 101 - interlocutory injunctions are typically reserved to judges);

- Family law matters reserved to judges by the Family Law Rules.

The official 2022 NCA sample exam Q5(f) tests this distinction ("Masters are involved in settlement discussions, judges are not" - false; both Associate Judges and judges may participate in settlement and pre-trial conferences).

9.4 Evidence on Motions - Rule 39

- **Rule 39.01:** Evidence on a motion may be given by affidavit. The default and overwhelmingly most common form. The 2022 NCA sample exam Q5(j) tests this (true).
- **Rule 39.02:** Cross-examination on an affidavit is available as of right (without leave) before the motion is heard. Cross-examination is conducted out of court before a court reporter.
- **Rule 39.03:** With leave, evidence by direct examination of a witness may be permitted on a motion (rare; typically reserved for credibility-determinative motions).
- **Rule 39.04:** Evidence on a motion to dismiss for delay (Rule 24.01) - separate procedural rules apply.

9.5 Interlocutory vs Final Orders - Significance for Appeals

The distinction between interlocutory and final orders matters for appeals. An interlocutory order does not finally dispose of the rights of the parties on a substantive issue (e.g., a discovery order, an order striking part of a pleading without dismissing the action, an order setting a trial date). A final order disposes of the substantive matter (e.g., judgment, dismissal, refusal of summary judgment that ends the case).

Appeal routes (Courts of Justice Act):

- **CJA s 6(1)(b) - Court of Appeal:** Final orders of the Superior Court go to the Court of Appeal.
- **CJA s 19(1)(b) - Divisional Court:** Interlocutory orders go to the Divisional Court (with leave under Rule 62.02).
- **Rule 62.02:** Leave to appeal an interlocutory order requires the moving party to show that there is a conflicting decision and good reason to doubt its correctness, or that the matter is of such importance that leave should be granted.

9.6 Injunctions - Statutory Source and Test

Injunctions are governed by Rule 40 (procedure) and CJA s 101 (jurisdictional source: "In the Superior Court of Justice, an interlocutory injunction or mandatory order may be granted... where it appears to a judge of the court to be just or convenient to do so"). The substantive test was set out by the Supreme Court of Canada in RJR-MacDonald.

RJR-MacDonald Inc v Canada (AG), [1994] 1 SCR 311

Facts: Tobacco manufacturers sought an interlocutory injunction restraining federal regulations

requiring health warnings on cigarette packaging while their constitutional challenge proceeded.

Held (Sopinka and Cory JJ., unanimous): The three-part test for interlocutory injunctions (and stays of proceedings):

(1) Serious question to be tried. A low threshold - the case must not be frivolous or vexatious; there must be a substantial question to be tried. Not the same as showing a strong prima facie case (American Cyanamid threshold).

(2) Irreparable harm. Refers to the nature of the harm rather than its magnitude. Harm that cannot be quantified in monetary terms or that cannot be compensated by damages. Not merely a high financial loss - there must be something making it incalculable or uncompensable.

(3) Balance of convenience. Which party would suffer greater harm from the granting or refusal of the injunction pending trial? Where the public interest is engaged (constitutional cases, government regulation), the public interest weighs heavily in the balance and is presumed to favour the government.

Significance: RJR-MacDonald is the most-cited civil procedure authority in Canada. It is the test for every interlocutory injunction, every stay pending appeal, and every interim order suspending the operation of a statute or regulation.

MEMORY HOOK - SIB - the three RJR-MacDonald branches

Serious question to be tried; Irreparable harm; Balance of convenience. All three must be satisfied (the test is conjunctive). Public interest weighed under branch 3.

9.7 Mandatory vs Prohibitive Injunctions - The CBC Modification

R v Canadian Broadcasting Corp, 2018 SCC 5, [2018] 1 SCR 196

Facts: Crown sought a mandatory interlocutory injunction requiring CBC to remove identifying information about a deceased youth victim of an alleged offence from its website (a publication ban applied).

Held (Brown J., unanimous): The first branch of the RJR-MacDonald test is modified for MANDATORY interlocutory injunctions. Instead of "serious question to be tried," the applicant must show a STRONG PRIMA FACIE CASE - i.e., a likelihood of success at trial. Rationale: mandatory injunctions impose a positive obligation, are typically harder to reverse, and have potentially severe consequences.

The modified test: (1) Strong prima facie case (mandatory only); (2) Irreparable harm; (3) Balance of convenience. The other two branches are unchanged.

Significance: Two-track injunction test in Canada - prohibitive injunctions follow RJR-MacDonald; mandatory injunctions require the higher first-branch threshold from CBC. Always identify whether the relief is prohibitive ("do not do X") or mandatory ("do X") before applying the test.

9.8 Other Interlocutory Relief

- **Mareva injunction:** Pre-judgment freezing of the defendant's assets to preserve them for execution. Test (Aetna Financial Services v Feigelman, [1985] 1 SCR 2): strong

prima facie case + risk of dissipation + a particular and identifiable asset within the jurisdiction. Almost always sought ex parte at the outset.

- **Anton Piller order:** Civil search warrant - court-ordered search and seizure of evidence at the defendant's premises. Test (*Celanese Canada Inc v Murray Demolition Corp*, 2006 SCC 36): strong prima facie case + serious damage if order refused + clear evidence the defendant has the items + real possibility of destruction. Granted ex parte but with strict procedural protections.
- **Norwich order:** Pre-action discovery against a third party (typically a bank or internet service provider) to identify a wrongdoer. Five-factor test from *Norwich Pharmacal v Customs and Excise* [1973] UKHL 6 as adopted in Ontario.
- **Certificate of pending litigation (CPL):** Real-property equivalent of a Mareva - registered against title to prevent disposition pending litigation. Granted under Rule 42; registered under the Land Titles Act or Registry Act.

⚠ **EXAM TIP - INJUNCTIONS - IDENTIFY MANDATORY VS PROHIBITIVE FIRST**

Step 1: Is the relief mandatory ("defendant must do X") or prohibitive ("defendant must not do X")? This determines the first-branch threshold.

Step 2 - Prohibitive: Apply the unmodified RJR-MacDonald test - serious question to be tried (low threshold).

Step 2 - Mandatory: Apply the modified test from *R v CBC*, 2018 SCC 5 - strong prima facie case (likelihood of success at trial).

Step 3 (both): Irreparable harm - nature, not magnitude. Mere financial loss is usually not irreparable unless it threatens the existence of the business.

Step 4 (both): Balance of convenience - where public interest is engaged, presumed to favour the public authority.

Chapter 10: Disposition Without Full Trial

Most civil proceedings do not reach trial. They settle, are dismissed for procedural failure, are struck out, or are summarily disposed of. This chapter covers the principal mechanisms for disposing of an action without a full trial - the area most directly transformed by Hryniak's culture shift, and the subject of the official 2022 NCA sample exam Q4 (20 marks).

10.1 Summary Judgment - Rule 20 and the Hryniak Roadmap

Rule 20 allows the court to dispose of an action (or part of an action) without trial where there is no genuine issue requiring a trial. The 2010 amendments to Rule 20 broadened the court's powers significantly - a change Hryniak v Mauldin transformed into a fundamental reorientation of the civil justice system.

Rule 20 Provision	Substance
Rule 20.01 - Right to Move	Either party may move for summary judgment after the defence has been filed. The moving party submits a motion record with affidavit evidence; the responding party submits a responding record.
Rule 20.04(2) - When to Grant	The court "shall grant" summary judgment if there is "no genuine issue requiring a trial." Mandatory where the test is met; not discretionary.
Rule 20.04(2.1) - Enhanced Fact-Finding Powers	On a summary judgment motion the court may: (a) weigh the evidence; (b) evaluate the credibility of a deponent; (c) draw any reasonable inference from the evidence.
Rule 20.04(2.2) - Oral Evidence (Mini-Trial)	The court may order that oral evidence be presented by one or more parties to assist in determining whether there is a genuine issue requiring a trial.
Rule 20.05 - Trial Management	Where summary judgment is refused but a trial is required, the motion judge may give directions to expedite the trial - limit the issues, schedule discoveries, set trial dates.
Rule 20.06 - Costs	Costs are presumptively awarded on a partial-indemnity basis; substantial indemnity may be ordered where a party acted unreasonably or in bad faith in opposing or pressing the motion.

Hryniak's two-step roadmap (paras 49–66, syllabus reading):

11. "On a motion for summary judgment under Rule 20.04, the judge should first determine if there is a genuine issue requiring trial based only on the evidence before her, without using the new fact-finding powers." There will be no genuine issue requiring a trial "if the summary judgment process provides her with the evidence required to fairly and justly adjudicate the dispute and is a timely, affordable and proportionate procedure."
12. "If there appears to be a genuine issue requiring a trial, she should then determine if the need for a trial can be avoided by using the new powers under Rules 20.04(2.1) and (2.2). She may, at her discretion, use those powers, provided that their use is not against

the interest of justice. Their use will not be against the interest of justice if they will lead to a fair and just result and will serve the goals of timeliness, affordability and proportionality in light of the litigation as a whole."

10.2 Striking Pleadings - Rule 21

Rule 21 allows a party to attack a pleading on legal grounds - typically because it discloses no reasonable cause of action or defence, or the court has no jurisdiction. Unlike Rule 20 (summary judgment, which considers evidence), Rule 21 is decided on the pleadings alone, taking the alleged facts as true.

Rule 21 Provision	Substance
Rule 21.01(1)(a) - Determine Question of Law	The court may determine, before trial, a question of law raised in the pleading, where the determination may dispose of all or part of the action, substantially shorten trial, or result in substantial costs savings.
Rule 21.01(1)(b) - No Reasonable Cause of Action	The court may strike out a pleading on the ground that it discloses no reasonable cause of action or defence. Test: "plain and obvious" that the claim has no reasonable prospect of success - taking the pleaded facts as true.
Rule 21.01(3) - Other Grounds	The court may stay or dismiss for: (a) lack of jurisdiction; (b) lack of capacity; (c) another proceeding pending in Ontario or elsewhere on the same matter (lis pendens); (d) abuse of process.

R v Imperial Tobacco Canada Ltd, 2011 SCC 42, [2011] 3 SCR 45

Held (McLachlin CJ, unanimous): The test for striking a claim under Rule 21.01(1)(b) is whether, taking the pleaded facts as true, it is "plain and obvious" that the claim has no reasonable prospect of success. "The approach must be generous and err on the side of permitting a novel but arguable claim to proceed to trial." The court should not strike a claim simply because it is novel.

Significance: The plain and obvious test is the same as the s 5(1)(a) cause of action test for class certification (Hollick at para 25). A pleaded claim that survives a Rule 21 motion will satisfy the cause-of-action criterion in any subsequent class certification motion.

Atlantic Lottery Corp Inc v Babstock, 2020 SCC 19 confirms the plain and obvious test, refusing to recognise disgorgement for breach of contract simpliciter. The decision shows that even novel claims can be struck where the proposed cause of action has no reasonable prospect of legal success - but the threshold remains high and the court will err on the side of permitting genuinely arguable claims.

10.3 Other Disposition Mechanisms

Rule	Mechanism
Rule 19 - Default Judgment	Where a defendant fails to deliver a statement of defence within the time required, the plaintiff may move for default judgment. Liquidated demands (e.g., contract debt) - judgment signed by the registrar (Rule 19.04). Unliquidated damages - assessment of damages required (Rule 19.05). Default judgment may be set aside on motion (Rule 19.08) where the defendant has a defence with reasonable prospects of success and there is a reasonable explanation for the default.
Rule 21 - Strike on Legal Grounds	(See 10.2 above.) Decided on pleadings. "Plain and obvious" test.
Rule 22 - Special Case (Stated Case)	The parties may agree on a question of law for the court to determine, with an agreed statement of facts. Useful where the legal issue is determinative and the parties wish to avoid trial.
Rule 23 - Discontinuance and Withdrawal	A plaintiff may discontinue an action before the close of pleadings (Rule 23.01); thereafter, only with leave or consent. Discontinuance is generally without prejudice unless otherwise ordered.
Rule 24 / Rule 48.14 - Dismissal for Delay	Pre-2017: actions were administratively dismissed after two years if no trial date had been set (the old "automatic" dismissal). Now: a status notice is sent at the five-year mark; the plaintiff must take active steps (file timetable, restore to active status). Rule 24.01 allows a defendant to move for dismissal where the plaintiff has unduly delayed.
Rule 25.11 - Strike Pleadings	Distinct from Rule 21. Used to strike pleadings that are: (a) prejudicial, (b) immaterial, or (c) scandalous, frivolous, vexatious, or an abuse of process. The court may also order amendments rather than striking.
Rule 2.1 - Frivolous Proceedings on Paper	The court may, on its own initiative, dismiss frivolous, vexatious, or abusive proceedings without holding a hearing. Used principally for self-represented litigants who repeatedly file unfounded claims.

10.4 Recent Application of Hryniak

Royal Bank of Canada v 1643937 Ontario Inc, 2021 ONCA 98 illustrates Hryniak in action. The Court of Appeal granted summary judgment in favour of the bank in a guarantee dispute, applying the two-step roadmap and holding that the motion judge had appropriately used Rule 20.04(2.1) fact-finding powers without ordering a mini-trial. Moffitt v TD Canada Trust, 2023 ONCA 349 (referenced in the syllabus) applies similar reasoning in a contested professional negligence summary judgment context, confirming that summary judgment remains the rule rather than the exception where the documentary record permits a fair determination.

⚠ EXAM TIP - RULE 20 vs RULE 21 vs RULE 22 - DON'T CONFUSE THEM

Rule 20 (Summary Judgment): Considers evidence (affidavits, cross-examinations, oral evidence under Rule 20.04(2.2)). Asks whether there is a "genuine issue requiring a trial." Hryniak roadmap. Mandatory when no genuine issue.

Rule 21 (Strike Pleadings): Decided on pleadings alone, taking facts as true. Asks whether it is

"plain and obvious" the claim has no reasonable prospect of success. Imperial Tobacco. No evidence.

Rule 22 (Special Case): Agreed question of law on agreed facts. Used by consent of all parties.

On the exam: If the facts are disputed, Rule 20 (and possibly Rule 20.04(2.2) mini-trial). If the legal pleading is defective, Rule 21. If the parties agree on the facts and want a legal ruling, Rule 22.

Chapter 11: Trials, Judgments, and Appeals

Civil procedure does not end at the courthouse door. Cases that survive pre-trial disposition proceed to trial; trial verdicts produce judgments; judgments may be appealed; appellate decisions may be appealed to the Supreme Court of Canada. This chapter covers the procedure for each of these stages.

11.1 Trial of an Action - Rules 46–53

- **Rule 46 - Place of Trial:** Where the action is to be tried, set with reference to the convenience of parties and witnesses (Rule 46.03).
- **Rule 47 - Jury Notice:** Civil jury trials are available only where a party has served a jury notice (Rule 47.01). The notice may be struck under Rule 47.02 where the issues are too complex for a jury, where the case requires prolonged scientific or accounting evidence, or where the interests of justice so require. Civil juries are unavailable in family law (Rule 47.01(2)).
- **Rule 48 - Listing for Trial:** After completion of pleadings, discovery, and pre-trial conference, the action is set down for trial. Rule 48.14 governs administrative dismissal where actions languish.
- **Rule 51 - Admissions:** A party may serve a Request to Admit (Form 51A) requiring the opposing party to admit specified facts or documents. Failure to respond within 20 days is a deemed admission (Rule 51.03(1)).
- **Rule 52 - Trial Procedure:** Order of evidence; opening statements; examination-in-chief, cross-examination, re-examination; objections; exhibits.
- **Rule 53 - Evidence at Trial:** Includes Rule 53.03 expert evidence requirements; admissibility of business records under the Evidence Act; and rules on documentary evidence.

11.2 Hearing of an Application - Rule 38

Applications proceed to a hearing on a motion-style basis: the parties file affidavits, conduct cross-examinations, and argue the application before a single judge. The hearing is typically a half-day or one day. Rule 38.10 allows the court to direct conversion to an action where the application turns out to require a full trial.

11.3 References - Rules 54–55

A reference is a procedural mechanism by which the court refers a particular issue (e.g., the assessment of damages, the taking of accounts) to a Judge or Associate Judge for determination. References are common in mortgage proceedings (Rule 64), family law support enforcement, and accounting disputes.

11.4 Orders, Judgments, and Enforcement

- **Rule 59 - Form and Entry of Orders:** Orders are drafted, settled (where the parties cannot agree on form, the court approves the wording - Rule 59.04), and entered.
- **Rule 59.06 - Setting Aside or Varying:** An order may be set aside or varied on grounds of fraud, fresh evidence not previously available, or where the order has been pronounced in error. Time limits apply.
- **Rule 60 - Enforcement:** Writs of seizure and sale (Rule 60.07); garnishment (Rule 60.08); examination in aid of execution (Rule 60.18); contempt (Rule 60.11).

11.5 Appeals

Appeal Route	Substance
CJA s 6(1)(b) - Court of Appeal for Ontario	Final orders of the Superior Court of Justice (with limited exceptions). The principal appellate route for civil matters in Ontario.
CJA s 6(1)(a) - Court of Appeal	Final orders of the Divisional Court (with leave of the Court of Appeal under CJA s 6(1)(a) where the order is not subject to a further right of appeal).
CJA s 19(1)(a) - Divisional Court	Final orders of the Superior Court of Justice in proceedings up to \$50,000 (the small-amount appeals threshold).
CJA s 19(1)(b) - Divisional Court	Interlocutory orders of the Superior Court, with leave under Rule 62.02.
Rule 61 - Court of Appeal Procedure	Notice of Appeal within 30 days of the order; appeal book; factum; oral argument.
Rule 62 - Other Appeals (incl. Divisional Court)	Procedure for appeals not governed by Rule 61. Includes Rule 62.02 - leave to appeal interlocutory orders.
Rule 63 - Stay Pending Appeal	Money judgments are automatically stayed on filing the notice of appeal (Rule 63.01); other orders may be stayed only on motion (Rule 63.02). The motion is decided using the RJR-MacDonald test.

11.6 Standards of Appellate Review

Housen v Nikolaisen, 2002 SCC 33, [2002] 2 SCR 235

Held (Iacobucci and Major JJ., majority): The standards of appellate review:

Pure questions of law: Correctness - the appellate court substitutes its own view.

Questions of fact: Palpable and overriding error - the trial judge's findings stand unless an error is both obvious and material to the outcome.

Questions of mixed fact and law: Generally palpable and overriding error, unless an extricable question of law can be isolated, in which case correctness applies to the legal aspect.

Significance: Housen is the framework for every civil appeal in Canada. It explains why most appeals fail - the appellate court will not interfere with factual findings absent palpable and overriding error.

11.7 Further Appeals to the Supreme Court of Canada

Appeals from the Court of Appeal for Ontario to the Supreme Court of Canada are governed by the Supreme Court Act, RSC 1985, c S-26. The principal route is by leave under s 40 - the SCC grants leave where the question is of public importance, or the importance of the issues, the case, or the question warrants a decision. Few civil appeals are granted leave (typically fewer than ten per cent of leave applications).

EXAM TIP - APPEALS - CHECK THE ROUTE FIRST

Step 1: Final or interlocutory order? Final goes to Court of Appeal (CJA s 6); interlocutory to Divisional Court with leave (CJA s 19(1)(b); Rule 62.02).

Step 2: If final order from Superior Court, money amount under \$50,000? Then Divisional Court under CJA s 19(1)(a), not Court of Appeal.

Step 3: Apply Housen - correctness for law, palpable and overriding error for fact.

Step 4: Stay pending appeal - automatic for money judgments (Rule 63.01); discretionary for others (Rule 63.02; RJR-MacDonald test).

Chapter 12: Pluralism of Participants and Processes

Civil procedure has historically been imagined as a single adversarial process: parties before a court, governed by a uniform set of Rules, applying a single body of law. The reality of contemporary Canadian justice is more pluralistic - different participants, different processes, different normative frameworks coexisting alongside (and sometimes in tension with) the formal civil justice system.

12.1 What "Pluralism" Means in Civil Procedure

Three dimensions of pluralism are relevant:

- **Pluralism of processes.** Civil disputes can be resolved through litigation, arbitration, mediation, or court-annexed ADR. They can also be resolved through administrative tribunals, restorative justice processes, religious tribunals (where the parties so consent), or community-based dispute resolution mechanisms. The Arbitration Act, 1991 and the Commercial Mediation Act, 2010 provide statutory frameworks for some of these alternatives, but pluralism extends beyond what Ontario law formally recognises.
- **Pluralism of participants.** The civil justice system is not just lawyers and judges. It includes self-represented litigants (Rule 15.01.1 expressly acknowledges this), paralegals, mediators, arbitrators, expert witnesses, interpreters, court-appointed amicus, public interest interveners (Rule 13), and trial-watching civil society organisations.
- **Pluralism of laws and norms.** The substantive law applied in civil proceedings includes common-law doctrine, provincial and federal statutes, equitable principles, constitutional standards, international treaty obligations, and (increasingly) Indigenous legal traditions.

12.2 Indigenous Legal Traditions and Dispute Resolution

The Truth and Reconciliation Commission of Canada's Final Report (2015), required reading on the syllabus at pp 164–170, identified the formal civil justice system's failure to engage with Indigenous legal traditions as a continuing manifestation of colonial relations. Calls to Action 27 and 28 specifically invite the legal profession and law schools to incorporate Indigenous law into legal education and practice; Calls to Action 25 and 50 call on Canadian governments and law societies to support Indigenous-led dispute resolution institutions.

Indigenous legal traditions include the laws and dispute resolution systems of the diverse First Nations, Métis, and Inuit peoples in Canada. Each has its own substantive law, procedural norms, and institutions. Common features identified in the Indigenous law literature include: emphasis on relationships and reconciliation rather than adversarial determination of fault; participation by elders and community members; orientation toward future relationship rather than past liability; ceremonial and storytelling components; and consensus-based decision making.

Indigenous dispute resolution sits in complex relation to the civil justice system. In some contexts, Canadian courts have recognised the binding force of Indigenous law (most prominently in the Aboriginal title cases - *Tsilhqot'in Nation v British Columbia*, 2014 SCC 44, recognising Tsilhqot'in laws on land tenure). In others, parallel Indigenous-led processes operate alongside formal litigation (community-based mediation programs in family law, the

Akwesasne Justice Department, the Tsuut'ina Nation Court). In still others, the Truth and Reconciliation Commission's call has not yet been answered.

12.3 What Process for What Dispute?

A pluralistic civil justice system requires choices. Several factors guide the choice:

- **Nature of the relationship.** Disputes between parties with continuing relationships (family members, business partners, neighbours) often benefit from consensual, future-oriented processes (mediation, restorative justice). Disputes between strangers may be more amenable to adversarial adjudication.
- **Power dynamics.** Where there is significant power imbalance (consumer vs corporation, employee vs employer, abused spouse vs abuser), consensual processes may not produce fair outcomes - *Uber v Heller*, 2020 SCC 16 illustrates the limits of compelled arbitration in contexts of inequality.
- **Public interest.** Disputes engaging important public norms (constitutional rights, regulatory compliance, public safety) may require public adjudication - class actions and judicial review play a vital role here, as *Hryniak* (2014) and *AIC v Fischer* (2013) recognise.
- **Resources.** Cost and complexity weigh in favour of streamlined alternatives where possible. *Hryniak*'s culture shift recognises this; so does the Action Committee on Access to Justice in Civil and Family Matters' Roadmap for Change (2013).

12.4 The Lawyer's Role in a Plural System

Modern professional responsibility recognises pluralism. The FLSC Model Code r 3.2-4 requires lawyers to encourage clients to compromise where compromise is reasonable. The Law Society of Ontario's Rules of Professional Conduct contain similar requirements. Increasingly, lawyers are also required to be culturally competent - particularly in matters involving Indigenous clients or clients from racialised communities - and to understand the procedural alternatives available to their clients.

⚠ EXAM TIP - PLURALISM - TIE BACK TO THE FACTS

On any exam question raising ADR options, restorative processes, or Indigenous-led dispute resolution, frame the answer using the plural-process choices: (1) Is there an arbitration clause or an applicable Indigenous-led process? (2) Is mandatory mediation triggered (Rule 24.1)? (3) What are the parties' interests in continuing relationships, fairness of process, and substantive justice? (4) Cite the TRC Final Report where Indigenous parties or processes are involved.

Chapter 13: Costs and Fees

Costs are the financial consequence of litigation. They are not merely an administrative afterthought - they shape behaviour throughout the proceeding, encourage settlement (Rule 49), and provide the incentive for parties to litigate proportionately. The official 2022 NCA sample exam Q5(d) tests this directly ("Losing parties pay costs at trials, but losing parties do not pay costs on motions" - false; the unsuccessful party on a motion is regularly ordered to pay costs).

13.1 The Difference Between "Costs" and "Fees"

Term	Meaning
Fees (or "legal fees")	The amount the client pays their own lawyer for legal services. Governed by the retainer agreement, the Solicitors Act (RSO 1990, c S.15), and the Rules of Professional Conduct. Includes hourly rates, contingency fee arrangements, and disbursements (court filing fees, expert reports, transcripts).
Costs	The amount one party pays the other party as a contribution toward the recipient party's legal expenses. Awarded by the court at the conclusion of a step in the proceeding (motion, trial, appeal). Governed by Rules 56–58 and the CJA s 131. Costs are NOT a full indemnity; they are partial.

13.2 Statutory and Rule-Based Framework

- **CJA s 131(1):** "Subject to the provisions of an Act or rules of court, the costs of and incidental to a proceeding or a step in a proceeding are in the discretion of the court, and the court may determine by whom and to what extent the costs shall be paid." Costs are inherently discretionary.
- **Rule 57.01:** Factors the court may consider - the amount claimed and recovered; the apportionment of liability; the complexity of the proceedings; the importance of the issues; the conduct of any party; whether any step in the proceeding was improper, vexatious, or unnecessary; whether any step was taken through negligence, mistake, or excessive caution; and many others.
- **Tariff A:** The costs grid attached to the Rules - sets out partial-indemnity rates for various levels of counsel and stages of proceedings. Reference point but not binding.
- **Rule 57.03:** Default rule - costs follow the event (the successful party recovers costs). Subject to court's discretion to depart.

13.3 Levels of Cost Awards

Level	Approximate Recovery
Partial indemnity	The default level. Typically recovers approximately 35–40% of the actual fees (per Tariff A rates). Awarded to the successful party in

Level	Approximate Recovery
	most cases.
Substantial indemnity	Approximately 1.5 × partial indemnity, or roughly 60–70% of actual fees. Awarded where the unsuccessful party has acted unreasonably (e.g., maintained a meritless position, refused a reasonable Rule 49 offer, or behaved improperly).
Full indemnity	100% of actual fees. Rare. Awarded only in exceptional cases - e.g., contractual provisions for full indemnity, fraud, contempt of court.

13.4 Rule 49 - Settlement Offers and Cost Consequences

Rule 49 is the most important cost-shaping tool in Ontario civil procedure. It allows parties to make formal offers to settle that, if not accepted, trigger automatic costs consequences if the offering party does at least as well at trial as the offer.

- **Plaintiff's Rule 49 offer beaten or matched at trial:** The plaintiff is entitled to partial indemnity costs to the date of the offer and substantial indemnity costs from the date of the offer to the trial (Rule 49.10(1)).
- **Defendant's Rule 49 offer beaten or matched at trial:** The plaintiff is entitled to partial indemnity costs to the date of the offer; the defendant is entitled to partial indemnity costs from the date of the offer to the trial (Rule 49.10(2)).
- **Rule 49.13:** The court retains discretion to depart from the Rule 49 cost consequences in the interests of justice, but rarely does so.

⚠ EXAM TIP - RULE 49 - THE LITIGATOR'S WORKHORSE

Rule 49 is the principal mechanism by which lawyers actually settle cases in Ontario. A well-pitched Rule 49 offer either resolves the case at the offered figure or shifts the cost risk decisively. On any exam fact pattern involving a settlement offer or refusal, ask: was the offer in Rule 49 form? Was it open to acceptance? Did the recipient do worse at trial? If yes to all three, the cost shift applies.

13.5 Costs on Motions

Costs on interlocutory motions are awarded at the conclusion of the motion (Rule 57.01). The default presumption (Rule 57.03) - costs follow the event - applies to motions just as it does to trials. The Q5(d) of the 2022 NCA sample exam tests this rule (the proposition that losing parties do not pay costs on motions is false). Costs on motions are typically partial-indemnity unless the moving party acted unreasonably.

13.6 Contingency Fees and Litigation Funding

Solicitors Act s 28.1 governs contingency fee agreements. The lawyer's fee is contingent on success, and the agreement must be in writing and meet specified content requirements. In Ontario, contingency fees over 33% require court approval; fees over 50% are essentially never approved. The Solicitors Act s 20 governs assessment of solicitor-and-client bills.

Third-party litigation funding is increasingly available. In class proceedings, third-party funding agreements typically require court approval (*Houle v St Jude Medical*, 2017 ONSC 5129). In ordinary commercial litigation, third-party funding is permitted subject to common-law limits on champerty and maintenance (the historical doctrines that prohibit improperly funding another's litigation for profit).

13.7 Security for Costs - Rule 56

Where there is reason to believe the plaintiff cannot satisfy a costs award if the action fails, the defendant may move for security for costs. Triggers (Rule 56.01(1)): plaintiff resident outside Ontario; corporation plaintiff with insufficient assets; reason to believe the action is frivolous or vexatious; and others. The plaintiff must post security (often into court) failing which the action is stayed. Security for costs motions are often used strategically against impecunious or out-of-jurisdiction plaintiffs.

13.8 Advance Costs - A Rare Exception

In rare cases of public-interest litigation, the court may order one party (typically the government) to pay the other party's legal costs IN ADVANCE of the litigation, allowing an impecunious public-interest litigant to proceed. The framework comes from *British Columbia (Minister of Forests) v Okanagan Indian Band*, 2003 SCC 71, refined in *Little Sisters Book and Art Emporium v Canada*, 2007 SCC 2, and most recently clarified in *Anderson v Alberta*, 2022 SCC 6.

Anderson v Alberta, 2022 SCC 6

Facts: Beaver Lake Cree Nation sued Canada and Alberta under section 35 of the Constitution Act, 1982 alleging that cumulative effects of industrial development infringed Treaty 6 rights. A 120-day trial was scheduled. The cost of the litigation was estimated at \$5 million; Beaver Lake had access to roughly \$3 million of unrestricted funds but argued these were committed to pressing community needs (housing, water, education).

Held (Karakatsanis and Brown JJ., unanimous): Advance costs may be available to a First Nation government even where the Nation has unrestricted financial resources, provided those resources must be devoted to genuine pressing needs. "Pressing needs" is fact-specific and must be assessed from the perspective of the First Nation's own governance and priorities; it is not limited to the bare necessities of life. Four-step analysis (paras 19–46, syllabus reading):

- (1) Identify the applicant's pressing needs (from the FN's perspective);
- (2) Determine the resources required to meet those needs;
- (3) Assess whether the applicant cannot meet pressing needs and litigation costs simultaneously;
- (4) Identify the estimated costs of funding the litigation.

Significance: Anderson refines the impecuniosity branch of the Okanagan test (which also

requires a meritorious case and issues of public importance). Although the test remains stringent and advance costs remain a last resort, Anderson opens the door for First Nation governments with limited resources to pursue constitutional claims they would otherwise abandon. The decision is required reading at paras 19–46.

13.9 Costs in Class Proceedings

CPA s 31(1) gives the court special discretion in class proceedings, recognising that costs awards calibrated for ordinary litigation may unfairly burden representative plaintiffs and discourage meritorious class proceedings. CPA s 32 governs the agreement between the representative plaintiff and class counsel - fees and disbursements must be approved by the court. CPA s 33.1 (added by Bill 161) governs third-party funding in class proceedings, requiring court approval and protection of the class's interests.

⚠ EXAM TIP - COSTS - STRUCTURE THE ANSWER

Step 1: Default - costs follow the event (Rule 57.03). Successful party gets costs.

Step 2: Was there a Rule 49 offer? Apply Rule 49.10 cost consequences if applicable.

Step 3: What level - partial indemnity (default), substantial indemnity (where the unsuccessful party acted unreasonably or refused a reasonable Rule 49 offer), or full indemnity (rare)?

Step 4: Apply Rule 57.01 factors - complexity, conduct of parties, importance of issues, etc.

Step 5: Special contexts - public interest litigation (Okanagan/Anderson advance costs); class proceedings (CPA s 31); security for costs against impecunious or out-of-jurisdiction plaintiff (Rule 56).

Chapter 14: Access to Justice

Access to justice runs through this entire syllabus as the framing context for procedural reform. It is not a separate doctrinal area - it is the lens through which every procedural rule, every disposition mechanism, and every cost rule is now interpreted. This chapter consolidates the access-to-justice themes that have appeared throughout the preceding chapters.

14.1 What Is "Access to Justice"?

Trevor Farrow, in his 2014 Osgoode Hall Law Journal article "What is Access to Justice?" (51:3 Osgoode Hall LJ 957), reviews competing definitions and proposes a comprehensive understanding. Access to justice is not just access to courts. It includes access to legal information, to legal representation, to formal and informal dispute resolution, to fair process, and - critically - to substantive justice (a just outcome, not just a hearing).

The Action Committee on Access to Justice in Civil and Family Matters (chaired by Thomas Cromwell J.) issued the seminal Roadmap for Change report in October 2013. The report's framing has shaped every subsequent reform - from Hryniak's 2014 culture shift to Bill 161's class action reforms to recent provincial initiatives on simplified procedure thresholds and remote hearings.

14.2 The Components of Access to Justice

- **Affordability.** Most Canadians cannot afford lawyers. Legal aid covers only a fraction of need; contingency fees address a subset of cases (personal injury, discrimination); paralegal practice is limited. The cost barrier is the single largest source of unmet legal need.
- **Timeliness.** Cases that take years to resolve provide neither remedy nor finality. Hryniak's culture shift addresses this directly through enhanced summary judgment powers.
- **Procedural fairness.** Even where access exists, the process must be fair. *AIC v Fischer* treats this as the procedural component of access to justice in the class action context.
- **Substantive justice.** The substantive component identified in *Fischer* - does the process produce just outcomes? A fair process that produces unjust results does not provide access to justice.
- **Cultural and linguistic accessibility.** Court services in both official languages (Charter s 14, federally; provincial requirements vary); culturally appropriate processes (TRC Calls to Action 25–28); accommodation of self-represented litigants and persons with disabilities.

14.3 The Law Society's Statutory Role

The Law Society Act, RSO 1990, c L.8, s 4.2 imposes a statutory duty on the Law Society of Ontario to facilitate access to justice. The Law Society regulates the legal profession with the explicit dual mandate of protecting the public and "facilitat[ing] access to justice for the people of

Ontario." This duty has informed Law Society initiatives on paralegal regulation, articling reform, lawyer competence, and pro bono legal services.

14.4 Hryniak as the Procedural Embodiment of Access to Justice

Hryniak v Mauldin, 2014 SCC 7 (Chapter 1, Chapter 10) is the most important access-to-justice decision in modern Canadian civil procedure. Its "culture shift" reframes summary judgment, proportionality (Rule 1.04(1.1)), case management, and discovery as instruments of access. Wherever the Civil Procedure exam asks why a particular procedure exists, why a particular order was made, or why a particular reform was enacted - *Hryniak's* culture shift is the answer.

14.5 *Anderson v Alberta* and Indigenous Access

Anderson v Alberta, 2022 SCC 6 (Chapter 13) extends the access-to-justice analysis into Indigenous constitutional litigation. The decision recognises that the formal advance-costs framework, applied without sensitivity to the systemic barriers facing First Nation governments, would foreclose meritorious section 35 claims that public funds and treaty obligations require to be heard. The case is required reading on the syllabus and is the procedural counterpart to the substantive reconciliation framework in *Tsilhqot'in Nation* and *Manitoba Metis Federation*.

EXAM TIP - ACCESS TO JUSTICE - INVOKE IT WHENEVER POSSIBLE

Access to justice is the framing context the syllabus expressly identifies. When answering any question on summary judgment, certification, costs, or proportionality, link your analysis to access to justice - cite *Hryniak's* culture shift, *Fischer's* two-step access analysis, and (for First Nations contexts) *Anderson v Alberta*. Marker familiarity with this framing is high; explicit anchoring will earn marks.

Chapter 15: Other Topics - Res Judicata, Delay, Default, Discontinuance, Contempt, and Remote Hearings

This chapter covers a series of doctrinal points and procedural mechanisms not fitting neatly within the earlier chapters. Each is testable; together they round out the syllabus.

15.1 Res Judicata and Issue Estoppel

Res judicata is the doctrine that a final judgment on the merits bars subsequent litigation of the same matter. It has three distinct branches:

- **Cause of action estoppel.** A final judgment on a cause of action bars subsequent litigation of that cause of action between the same parties. Includes claims that could have been raised in the prior proceeding (the so-called "rule in Henderson v Henderson").
- **Issue estoppel.** A final determination of a specific issue between the parties bars relitigation of that issue. Three preconditions: (1) same question decided; (2) final judicial decision; (3) same parties or privies. Even if all three are met, the court retains discretion to refuse application of issue estoppel where it would be unjust (Penner).
- **Abuse of process.** A residual doctrine permitting the court to bar relitigation where it would be an abuse of process even if the strict requirements of the other branches are not met. Used cautiously.

Penner v Niagara (Regional Police Services Board), 2013 SCC 19, [2013] 2 SCR 125

Facts: Penner was arrested in a courtroom for alleged disruptive behaviour. He filed a Police Services Act complaint (administrative) and also a civil action for false arrest and excessive force. The disciplinary tribunal cleared the officers. The defendants moved to strike Penner's civil claims on issue estoppel grounds, arguing that the same questions had been finally decided.

Held (Cromwell and Karakatsanis JJ. for majority 4–3): Issue estoppel did not bar the civil action. The three preconditions were satisfied, but the court exercised its discretion under the Danyluk framework (Danyluk v Ainsworth Technologies Inc, 2001 SCC 44) to refuse to apply issue estoppel.

Discretionary factors: Differences in the purposes, processes, and stakes of the two proceedings; the reasonable expectations of the parties; the legislative scheme of the Police Services Act (which did not contemplate that disciplinary findings would resolve civil liability); the different standards of proof (clear and convincing evidence under PSA vs balance of probabilities in tort).

Significance: Issue estoppel from administrative tribunal decisions is discretionary, not automatic. The Danyluk framework - which Penner expressly preserved - guides the analysis. Where applying issue estoppel would work an injustice (incompatible purposes, different evidentiary standards, no reasonable expectation of finality), the court will refuse.

15.2 Delay - Rule 48.14

Rule 48.14 governs the administrative dismissal of civil actions for delay. Under the post-2017 framework, the registrar issues a status notice once the action has been on the books for five years without being placed on the trial list (or has been placed on a list but not heard within two years). The plaintiff must respond - by filing a status hearing request, agreeing on a timetable, or otherwise advancing the action - or face dismissal.

Distinct from Rule 48.14 administrative dismissal is a defendant's motion to dismiss for delay under Rule 24.01. The defendant must show inordinate, inexcusable delay causing prejudice. Status notices and motions to dismiss for delay together create a procedural mechanism encouraging timely resolution.

15.3 Default Judgment - Rule 19

Where a defendant fails to deliver a statement of defence within the required time, the plaintiff may move for default judgment:

- **Rule 19.01:** The plaintiff must first note the defendant in default by filing a requisition with the registrar.
- **Rule 19.04 - Liquidated Demand:** Where the claim is for a liquidated demand (a precisely calculable sum, e.g., a contract debt), the registrar may sign default judgment without a motion.
- **Rule 19.05 - Unliquidated Damages:** Where damages are unliquidated, the plaintiff must move for an assessment of damages - affidavit evidence; the court determines the amount.
- **Rule 19.08 - Setting Aside:** A defaulted defendant may move to set aside the default judgment. The court applies a flexible test: (i) is there a reasonable explanation for the default? (ii) does the defendant have a defence with reasonable prospects of success? (iii) was the motion brought promptly? Setting aside is generally available where the defendant did not deliberately ignore the proceedings.

15.4 Discontinuance and Withdrawal - Rule 23

- **Rule 23.01(1):** A plaintiff may discontinue an action without leave at any time before the close of pleadings, on notice.
- **Rule 23.01(2):** After the close of pleadings, leave of the court (or written consent of all parties) is required.
- **Rule 23.05:** Discontinuance is generally without prejudice to the right to commence a new proceeding, unless the parties agree or the court orders otherwise.
- **Costs:** The discontinuing party is presumptively liable for the defendant's partial-indemnity costs to the date of discontinuance.

15.5 Contempt of Court

Civil contempt is the wilful disobedience of a court order. Rule 60.11 governs contempt proceedings in civil matters. The procedure starts with a motion supported by affidavit evidence. The standard of proof for contempt is criminal - beyond a reasonable doubt - even though the proceeding is civil.

Carey v Laiken, 2015 SCC 17

Held (Cromwell J., unanimous): The three elements of civil contempt are: (1) the order alleged to have been breached must state clearly and unequivocally what should and should not be done; (2) the alleged contemnor must have actual knowledge of the order; (3) the alleged contemnor must intentionally have done the prohibited act or failed to do the required act. All three must be proved beyond a reasonable doubt. The court retains discretion to refuse to find contempt even where the elements are met (e.g., where the breach was technical or where the consequences would be disproportionate).

15.6 Remote Hearings and Virtual Courts

The COVID-19 pandemic accelerated the adoption of remote hearings in Canadian civil procedure. Judges, parties, witnesses, and counsel routinely participate via Zoom, Microsoft Teams, or similar platforms. The Joint E-Hearings Task Force of The Advocates' Society, OBA, FOLA, and OTLA published Best Practices for Remote Hearings (May 2020), which has been adopted (with modifications) by Ontario's Superior Court of Justice.

Remote hearings are now governed by Rule 1.08 (proceedings conducted by remote means). The court considers: the importance of the issues; the suitability of remote technology; the prejudice to either party; and the interests of justice. Most procedural motions and many uncontested matters are now conducted remotely; contested trials are increasingly hybrid (some witnesses in person, others remote); pure-virtual contested trials remain comparatively rare.

⚠️ EXAM TIP - ROUND-UP - DON'T FORGET THESE ON A FACT PATTERN

Issue estoppel: Three preconditions + Penner discretion. Don't forget the discretion stage.

Default judgment: Rule 19 distinguishes liquidated (registrar) from unliquidated (assessment). Setting aside requires reasonable explanation + meritorious defence + prompt motion.

Contempt: Carey v Laiken three elements; criminal standard; discretion to decline.

Discontinuance: Without leave before close of pleadings; with leave after.

Delay: Rule 48.14 administrative + Rule 24.01 motion.

Remote hearings: Rule 1.08 + post-2020 Best Practices guidance - now part of the routine procedural toolkit.

Appendix A: Master Case Law Reference

Single-page reference to the leading cases, organised by syllabus topic. Use this Appendix as your case-name lookup table during the exam - flip to it when you need to anchor a rule statement to authority. Citations verified against CanLII at the time of writing.

A.1 Foundational / Cross-Cutting

Case	Holding
Hryniak v Mauldin, 2014 SCC 7, [2014] 1 SCR 87	Culture shift; two-step roadmap for Rule 20 summary judgment; Rules 20.04(2.1) and (2.2) fact-finding powers presumptively available; access to justice as the framing principle.
Reference re Code of Civil Procedure (Que.) art 35, 2021 SCC 27	Civil procedure is principally a provincial power under s 92(14); constitutional limits on provincial restrictions of s 96 superior court jurisdiction.
Douez v Facebook, Inc, 2017 SCC 33, [2017] 1 SCR 751	Forum-selection clause in consumer contract unenforceable on public policy / inequality of bargaining power grounds; Pompey two-step test.

A.2 Limitations, Capacity, Standing, Parties

Case	Holding
Grant Thornton LLP v New Brunswick, 2021 SCC 31, [2021] 2 SCR 704	Discoverability - "plausible inference of liability" standard; constructive knowledge from suspicion that triggers reasonable diligence.
Peixeiro v Haberman, [1997] 3 SCR 549	Common-law discoverability rule applies to limitation statutes unless clearly displaced; reasonable diligence standard.
Crombie Property Holdings Ltd v McColl-Frontenac Inc, 2017 ONCA 16	Suspicion can give rise to a duty of inquiry; constructive knowledge through reasonable diligence.
Canada (AG) v Downtown Eastside Sex Workers, 2012 SCC 45, [2012] 2 SCR 524	Three-factor public interest standing test (serious justiciable issue; genuine interest; reasonable and effective means).
BC (AG) v Council of Canadians with Disabilities, 2022 SCC 27	Reaffirmed Downtown Eastside; factors weighed purposively; capacity to present a concrete factual setting; class action relevant but not determinative.
Manitoba Metis Federation Inc v Canada (AG), 2013 SCC 14	Limitation periods do not generally apply to declaratory relief sought against the Crown for breach of constitutional obligation.

A.3 Pleadings

Case	Holding
Whiten v Pilot Insurance Co, [2002] 1 SCR 595	Punitive damages must be specifically pleaded with full particulars (Rule 25.06(8)–(9)); marked-departure standard for substantive entitlement.
Moosa v Hill Property Management Group Inc, 2010 ONSC 553 (Master)	Pleadings must give particulars sufficient for the opposing party to plead in response; Rule 25.10 particulars order; Rule 21.01(1)(b) strike where no particulars would cure.
Copland v Commodore Business Machines Ltd (1985), 52 OR (2d) 586 (Master)	Pleadings must state material facts not bare conclusions; the defendant must know the case to be met.

A.4 Class Proceedings

Case	Holding
Hollick v Toronto (City), 2001 SCC 68, [2001] 3 SCR 158	Five certification criteria (CPA s 5(1)); CPA construed generously; "some basis in fact" standard; three goals (judicial economy, access to justice, behaviour modification).
Western Canadian Shopping Centres Inc v Dutton, 2001 SCC 46	Common-law class proceedings principles where no legislation; representative actions through inherent jurisdiction.
Rumley v British Columbia, 2001 SCC 69, [2001] 3 SCR 184	Systemic claims with individual variations may still be certified where common issues capable of meaningful class-wide resolution exist.
AIC Limited v Fischer, 2013 SCC 69, [2013] 3 SCR 949	Two-step access-to-justice analysis for preferable procedure; both procedural and substantive components; five-question framework.
Heller v Uber Technologies Inc, 2021 ONSC 5518	Post-Bill 161 certification of misclassification class action; predominance and superiority assessed in light of access-to-justice barriers.

A.5 Jurisdiction and Service

Case	Holding
Club Resorts Ltd v Van Breda, 2012 SCC 17, [2012] 1 SCR 572	Two-stage test for jurisdiction simpliciter; four presumptive connecting factors (DCBS); rebuttal stage; forum non conveniens as separate analysis.
Lapointe Rosenstein v Cassels Brock, 2016 SCC 30	Fourth Van Breda factor (contract): dispute must "flow from" the contractual relationship; refined post-Sinclair v Venezia Turismo (2025).
Sinclair v Venezia Turismo, 2025 SCC 27	Narrowing application of fourth Van Breda factor; jurisdiction assessed per defendant; rebuttal stage given real bite; no

Case	Holding
	"bootstrapping" off another defendant's attornment.
Douez v Facebook, Inc, 2017 SCC 33	Forum-selection clauses in consumer contracts subject to public-policy override; Pompey test.

A.6 Discovery and Privilege

Case	Holding
Pritchard v Ontario (HRC), 2004 SCC 31	Solicitor-client privilege near-absolute; applies to in-house government counsel.
Blank v Canada (Minister of Justice), 2006 SCC 39	Litigation privilege distinct from solicitor-client; dominant purpose test; ends with the litigation.
Lizotte v Aviva, 2016 SCC 52	Litigation privilege is class privilege; abrogation requires clear, explicit, unequivocal statutory language.
Smith v Jones, [1999] 1 SCR 455	Public safety exception to solicitor-client privilege: clear, serious, imminent threat to identifiable person/group.
Canada (Privacy Commissioner) v Blood Tribe, 2008 SCC 44	Solicitor-client privilege not abrogated by general statutory language; clear and unequivocal language required.
Union Carbide Canada v Bombardier, 2014 SCC 35	Settlement privilege protects communications with view to settlement; parties may contract out through enhanced confidentiality.
AM v Ryan, [1997] 1 SCR 157	Wigmore four-part test for case-by-case privilege; psychiatrist–patient communications protected on facts.

A.7 ADR and Arbitration

Case	Holding
Seidel v TELUS Communications Inc, 2011 SCC 15	Statutory consumer rights override contractual arbitration clauses where legislature so intends.
Uber Technologies Inc v Heller, 2020 SCC 16	Unconscionability test: inequality of bargaining power + improvident bargain. Arbitration clause requiring USD \$14,500 fee in Netherlands held unconscionable.

A.8 Motions, Injunctions, Disposition

Case	Holding
RJR-MacDonald Inc v	Three-part test for interlocutory injunctions: serious question +

Case	Holding
Canada (AG), [1994] 1 SCR 311	irreparable harm + balance of convenience. Public interest weighed in branch 3.
R v Canadian Broadcasting Corp, 2018 SCC 5	Modified test for MANDATORY interlocutory injunctions: strong prima facie case + irreparable harm + balance of convenience.
R v Imperial Tobacco Canada Ltd, 2011 SCC 42	Test for striking pleadings under Rule 21.01(1)(b): plain and obvious that claim has no reasonable prospect of success.
Atlantic Lottery Corp Inc v Babstock, 2020 SCC 19	Plain and obvious test confirmed; novel claims may be struck where no reasonable prospect of legal success.

A.9 Trials, Appeals, Costs, Other

Case	Holding
Housen v Nikolaisen, 2002 SCC 33	Standards of appellate review: correctness for law; palpable and overriding error for fact; mixed questions generally palpable and overriding error unless extricable legal question.
Penner v Niagara (RPSB), 2013 SCC 19	Issue estoppel discretionary; three preconditions plus Danyluk discretion to refuse where it would work injustice.
Carey v Laiken, 2015 SCC 17	Civil contempt three elements: clear order + actual knowledge + intentional disobedience. Criminal standard of proof.
Anderson v Alberta, 2022 SCC 6	Advance costs for First Nation governments - "pressing needs" test refines impecuniosity branch of Okanagan; four-step analysis.
BC (Min of Forests) v Okanagan Indian Band, 2003 SCC 71	Advance costs framework: impecuniosity + meritorious case + public importance. Last resort.
Burr v Tecumseh Products of Canada Limited, 2023 ONCA 135	Costs on summary judgment motions; CJA s 131 discretion; Rule 49 cost consequences.

Appendix B: Issue-Spotter and Trigger Words

Civil Procedure exam questions reward issue-spotting at speed. Each fact pattern embeds multiple procedural issues, often signaled by particular phrases or facts. This Appendix provides a ready-reference table of trigger words and the procedural issues they typically signal. When you read a fact pattern, run through this table mentally.

B.1 Trigger Words and Issues

Trigger Word / Fact	Procedural Issue and Authority
"defendant in [foreign country]" / "Cuban" / "Italian" / "served outside Ontario"	Jurisdiction simpliciter (Van Breda four DCBS factors; rebuttal stage); forum non conveniens; service outside Ontario (Rule 17.02 without leave; Rule 17.03 with leave); Sinclair v Venezia Turismo (2025) on per-defendant analysis.
"two years ago" / "discovered last week" / "first noticed"	Limitation periods (Limitations Act 2002 s 4 - basic two years; s 5 - discoverability four-element test; s 15 - ultimate fifteen years); Grant Thornton plausible inference of liability.
"under 18" / "minor" / "incapable" / "litigation guardian"	Capacity (Rule 1.03 disability; Rule 7 litigation guardian; Limitations Act s 6 minor tolling, s 7 incapacity tolling).
"organisation challenges constitutionality" / "public interest litigation" / "no individual plaintiff"	Public interest standing (Downtown Eastside three factors; Council of Canadians 2022 - purposive weighing, capacity to present concrete factual setting).
"confidential between lawyer and client" / "prepared for litigation" / "settlement discussion"	Privilege analysis: solicitor-client (Pritchard, Blood Tribe), litigation (Blank, Lizotte), settlement (Union Carbide), Wigmore (AM v Ryan); public safety exception (Smith v Jones).
"summary judgment" / "no genuine issue" / "motion to dismiss before trial" / "won at the motion stage"	Rule 20 (Hryniak roadmap; Rules 20.04(2.1) fact-finding, 20.04(2.2) oral evidence).
"strike the pleading" / "no reasonable cause of action" / "the claim should be dismissed on the pleadings"	Rule 21 motion to strike; "plain and obvious" test (Imperial Tobacco).
"restraining order" / "injunction" / "prevent the defendant from" / "restrain pending trial"	Interlocutory injunction; RJR-MacDonald three-part test (or strong prima facie case if mandatory - R v CBC 2018).
"freeze the defendant's"	Mareva injunction; strong prima facie case + risk of dissipation +

Trigger Word / Fact	Procedural Issue and Authority
assets" / "prevent dissipation of funds"	identifiable asset.
"thousands of similarly affected" / "investors" / "all customers who bought" / "all members of"	Class proceedings; CPA s 5(1) five criteria + s 5(1.1) superiority and predominance (post-October 1, 2020); Hollick + Fischer + Bill 161 reforms.
"arbitration clause" / "agreed to arbitrate" / "standard form contract"	Arbitration Act 1991 s 7 stay; unconscionability (Uber v Heller); statutory override (Seidel); forum-selection (Doez).
"defendant did not file a defence" / "failed to respond" / "nothing has been done"	Default judgment (Rule 19 - liquidated by registrar; unliquidated requires assessment; Rule 19.08 setting aside).
"settlement offer" / "offer to compromise" / "\$X to drop the claim"	Rule 49 settlement offers; cost consequences if offer beaten (Rule 49.10).
"the action has been pending for [n] years" / "no progress" / "administrative dismissal"	Delay; Rule 48.14 status notice; Rule 24.01 motion to dismiss for delay.
"complaint to a tribunal first" / "already decided in a different forum"	Issue estoppel (Penner; Danyluk discretion); res judicata; abuse of process.
"impecunious" / "can't afford" / "First Nation seeking funding"	Advance costs (Okanagan + Little Sisters + Anderson v Alberta four-step pressing-needs analysis); security for costs (Rule 56) for defendants concerned about plaintiff's ability to pay.
"counterclaim against the plaintiff" / "defendant has its own claim"	Rule 27 counterclaim (against plaintiff); Rule 28 crossclaim (against co-defendant); Rule 29 third party (against non-party).
"refrigeration recording" / "document found" / "surveillance video" / "former employee's tape"	Documentary discovery (Rule 30.02(1) all documents relevant to any matter in issue); affidavit of documents (Rule 30.03); deemed undertaking (Rule 30.1).
"examined under oath" / "questioned at discovery" / "discovery transcript"	Examination for discovery (Rule 31; 7-hour limit Rule 31.05.1; only one corporate representative Rule 31.03(2)).
"mandatory mediation in Toronto/Ottawa/Windsor"	Rule 24.1 mandatory mediation within 180 days of first defence.
"the order is"	Appeal route - Court of Appeal (CJA s 6) for final orders; Divisional

Trigger Word / Fact	Procedural Issue and Authority
interlocutory" / "appeal to Divisional Court"	Court (CJA s 19; Rule 62.02 leave) for interlocutory orders.
"breach of court order" / "violated the injunction"	Civil contempt (Rule 60.11; Carey v Laiken three elements; criminal standard of proof).

Appendix C: Worked Sample Exam Walkthrough

This appendix walks through the official 2022 NCA Civil Procedure sample exam in full IRAC. Each answer is structured the way you should structure yours - roadmap sentence, then issue-by-issue IRAC, then conclusion. The answers are model answers showing how to deploy rule numbers, case authority, and proportionality framing under exam time pressure.

C.1 The Fact Pattern

Pratibha Kumar owns a food distribution company, Acme Foods ("Acme"). Acme delivers food (using Reliable Trucking, "Reliable") to True North Groceries ("True North"), a national grocery chain. True North claims:

- Acme failed to fully fill recent shipments (Acme attributes this to COVID-19 supply chain issues).
- A recent shipment of processed meat was spoiled, leading to health-related claims by True North's customers.
- Kumar's response: the meat spoilage was caused by improper refrigeration at True North's premises and/or by Reliable's transportation. A former Acme employee made a recording suggesting an Acme refrigeration unit was malfunctioning.

C.2 Question 1 (20 marks) - Commencing the Proceeding

The question

First, provide a detailed overview of the different procedures for commencing a proceeding in Canada. Second, assuming you act for True North, describe what procedure you would use to commence this proceeding, what document for commencing the proceeding you would use, and why. Describe what responding documents you would expect to receive, what time periods would apply, and what rules or other materials apply.

Roadmap

Two issues: (a) the framework of originating processes in Ontario; (b) the proper choice on these facts and the procedural steps that would follow. The action against Acme is one for unliquidated damages on a contract and tort claim with disputed facts - it must be commenced by action.

Issue 1 - Framework of Originating Processes

Rule. Ontario civil litigation begins with one of two originating processes: an action (Rule 14.05(1), commenced by statement of claim, Form 14A) or an application (Rule 14.05(2)–(3), commenced by notice of application, Form 14E). Rule 1.04(1.1) requires the procedure to be proportionate. The choice depends on the nature of the dispute, not the parties' preference. Actions are used where there are likely to be material facts in dispute requiring oral evidence at trial. Applications are used where the dispute can be decided on documentary evidence and affidavits - typically pure questions of law, statutory applications enumerated in Rule 14.05(3), or matters expressly within the application categories (declarations, will interpretation, oppression remedies, judicial review).

Application to facts. True North's claim against Acme is for breach of contract (failed shipments, contaminated meat) and tort (negligence in food handling). The factual matrix is heavily contested: Acme blames COVID-19 supply chain issues for delays, blames True North's refrigeration practices and Reliable's transportation for spoilage. There are material facts in dispute (the cause of spoilage, the standard of care in food handling, what Acme knew about its refrigeration unit, whether a former employee's recording is reliable evidence). Resolution will require oral evidence at trial. The proceeding must be commenced as an action.

Issue 2 - Originating Document, Responding Documents, and Time Periods

Originating document. True North will issue a Statement of Claim in Form 14A (Rule 14.07), pleading the material facts (Rule 25.06(1)) - the contract for food supply, the deliveries, the breach, the damages (including health claims arising from contaminated meat). Because the claim alleges damages arising from negligence and includes claims by True North's customers passed through, the claim should plead causation and damages with sufficient particularity to allow Acme to know the case to be met (*Moosa v Hill Property Management*; *Copland v Commodore*). If True North is also seeking punitive damages, they must be specifically pleaded (Rule 25.06(9); *Whiten v Pilot Insurance*, [2002] 1 SCR 595).

Service. The Statement of Claim must be served personally on Acme (Rule 16.01, Rule 16.02 - service on a corporation by leaving the document with an officer, director, or person in apparent control at the corporation's place of business). True North has six months from issuance to serve (Rule 14.08(1)).

Responding documents. Acme has twenty days from service to deliver a Statement of Defence (Rule 18.01). Acme may serve a Notice of Intent to Defend within the twenty-day period to extend the defence period by ten days (Rule 18.02). The Statement of Defence (Rule 25) will plead Acme's denial, particulars of any defence (e.g., COVID-19 force majeure, contributory negligence by True North), and any positive case (e.g., that Reliable's transportation caused spoilage).

Counterclaim, crossclaim, third party. Acme may file a Counterclaim against True North if it has a claim arising from the same facts (Rule 27 - typically included in the same document as the Statement of Defence, Form 27A). Acme may also bring a Third Party Claim against Reliable Trucking under Rule 29 - Reliable was the transportation company, Acme blames Reliable for spoilage; this raises a contribution/indemnity claim (Negligence Act s 1) properly tried with the main action. The Third Party Claim is filed within the time for delivering the Statement of Defence (Rule 29.02(1)) or with leave thereafter.

Reply. True North may serve a Reply within ten days of the Statement of Defence (Rule 25.04) - typically used to plead matters in confession and avoidance (e.g., why True North's refrigeration practices were adequate).

Procedural track. If True North's damages claim is up to \$200,000, Rule 76 simplified procedure applies (limited discovery, no jury, streamlined trial). If above \$200,000 (likely, given the volume of meat shipments and customer health claims), the action is on the ordinary track.

Conclusion

The proceeding must be commenced as an action by Statement of Claim (Form 14A) under Rule 14.05(1). True North must serve Acme personally within six months. Acme has 20 days to deliver a Statement of Defence (Rule 18.01), with a likely Counterclaim and a Third Party Claim against Reliable Trucking (Rule 29). The action will likely be on the ordinary track given the size of the damages claimed.

C.3 Question 2 (20 marks) - Consensual Dispute Resolution

The question

Acting for Acme, you are contacted by True North's lawyer about consensually-based dispute resolution. Provide an account to Acme of the available consensual dispute resolution processes - both within the Rules and separate from them. Describe how they work, why one might be chosen, and which you would recommend in this case.

Roadmap

The available consensual processes fall into four categories: direct negotiation (no formal procedure); mediation (court-annexed under Rule 24.1, or private under the Commercial Mediation Act 2010); arbitration (under the Arbitration Act 1991 if the parties agree); and Rule 49 formal settlement offers within the proceeding. I will canvass each, then recommend mediation as best suited.

Issue 1 - Direct Negotiation

Rule. Direct negotiation between counsel is not formally regulated by the Rules but is encouraged by professional norms. The FLSC Model Code r 3.2-4 requires lawyers to advise clients to compromise on a reasonable basis. Most Canadian litigators attempt direct negotiation before any other formal step.

Application. Direct negotiation costs nothing beyond counsel's time. It allows confidential exchange (settlement privilege protects the discussions - *Union Carbide Canada v Bombardier*, 2014 SCC 35). However, where the parties' positions are far apart, direct negotiation alone often fails.

Issue 2 - Mediation (Court-Annexed and Private)

Rule. If True North commences in Toronto, Ottawa, or Windsor, mandatory mediation applies under Rule 24.1.05 - within 180 days of the first defence. The parties select an approved mediator and exchange briefs (Rule 24.1.10). Mediation is non-binding (Rule 24.1.14). Outside those jurisdictions, the parties may agree to private mediation (Commercial Mediation Act, 2010, SO 2010, c 16, Sch 3). Settlement privilege protects communications (*Union Carbide*, 2014 SCC 35).

Application. Mediation is well-suited to this dispute. The Acme/True North/Reliable relationship is commercial and ongoing; preserving it has business value. The factual disputes (cause of spoilage) are amenable to risk-weighted compromise. A skilled mediator can reality-test each side's case and broker a settlement that preserves the relationship while sharing the loss.

Issue 3 - Arbitration

Rule. Where the parties have agreed to arbitrate (in their original supply contract or by post-dispute agreement), the Arbitration Act, 1991, SO 1991, c 17 governs. s 7 requires the court to stay any court proceeding where there is a valid arbitration agreement, with limited exceptions. Arbitration produces a binding award; review is limited (s 46).

Application. If the original Acme/True North supply contract contains an arbitration clause, that clause likely governs and would require staying any court action. The clause must be valid and enforceable - not unconscionable in the *Uber v Heller*, 2020 SCC 16 sense (no inequality of bargaining power between two commercial parties of broadly equivalent sophistication; no

improvident bargain). On the facts, both Acme and True North are commercial entities; an arbitration clause between them is likely enforceable. If no clause exists, the parties could still agree to arbitrate post-dispute.

Issue 4 - Rule 49 Settlement Offers

Rule. Rule 49 allows formal settlement offers within an existing proceeding. If the offer is in Rule 49 form and is at least as favourable to the offeree as the trial outcome, the offering party recovers favourable cost consequences (Rule 49.10) - substantial indemnity costs from the date of the offer (plaintiff who beats own offer) or partial-indemnity costs from the date of the offer (defendant who beats own offer). The court has limited discretion to depart (Rule 49.13).

Application. Rule 49 is the most powerful settlement tool once litigation has commenced. Acme should make an early Rule 49 offer to True North - a sum that True North is likely to refuse but that, if Acme does at least as well at trial, will shift substantial costs to True North. The offer creates real economic pressure to settle.

Recommendation

Mediation under Rule 24.1 (or a private equivalent) is the best fit for this dispute. The parties have an ongoing commercial relationship; the facts are disputed but susceptible to risk-weighted compromise; the costs of arbitration or trial would be substantial; and mediation preserves the relationship in a way litigation does not. If the supply contract contains an arbitration clause, that clause governs and must be honoured (Arbitration Act s 7) - but mediation can be used as a precursor to formal arbitration. Direct negotiation and Rule 49 offers should run in parallel as additional pressure points.

C.4 Question 3 (20 marks) - Discovery

The question

Acting for Acme and taking instructions from Kumar, provide a full description of the process by which all relevant evidence is exchanged between parties before trial. Describe the key elements (documentary and oral phases), the purpose, the main principles, the information subject to the process, what can be excluded and why, and timing considerations. Be specific about rules. Use examples.

Roadmap

Discovery has two phases: documentary (Rule 30) and oral (Rule 31). The two phases are governed by relevance (Rule 30.02(1), Rule 31.06), continuing duty (Rule 30.07), proportionality (Rule 29.2), and the deemed undertaking (Rule 30.1). Privilege excludes some documents. I will address each component in turn.

Issue 1 - Documentary Discovery (Rule 30)

Rule. Rule 30.02(1) requires every party to disclose every document "relating to any matter in issue" in the action that is or has been in the party's possession, control, or power, whether or not privilege is claimed. Each party serves an Affidavit of Documents (Form 30A or 30B) under Rule 30.03 listing documents in three schedules - A (in possession, not privileged); B (privileged, described generally); C (formerly in possession, no longer in possession). After service, the opposing party may inspect Schedule A documents (Rule 30.04). The duty is

continuing - Rule 30.07 requires updating where new relevant documents come to light. Discovery plan (Rule 29.1) and proportionality (Rule 29.2) constrain scope.

Application to Acme. Acme must list and produce: contracts with True North; delivery records; refrigeration maintenance and inspection records (highly material given the meat spoilage allegation); communications about the malfunctioning refrigeration unit; communications with Reliable; the former employee's HR file (relevant to credibility); internal investigation records. The disgruntled former employee's recording is in Acme's possession (or potentially in True North's possession through a tip-off) and is producible in Schedule A unless litigation privilege applies (it does not, because the recording was made by the employee for the employee's own purposes, not for Acme in contemplation of litigation - *Blank v Canada*, 2006 SCC 39).

Issue 2 - Oral Discovery (Rule 31)

Rule. Each party is entitled to examine each other party (Rule 31.03(1)). For corporate parties, only one representative may be examined absent court order (Rule 31.03(2)) - the choice is the corporation's. Each examining party is limited to a total of seven hours of oral examination, regardless of the number of persons examined, except with the consent of the parties or with leave of the court (Rule 31.05.1(1)). The examiner may ask any question relevant to any matter in issue (Rule 31.06). The party answering must inform him or herself before the examination from corporate records and from present and former employees, officers, agents, or representatives. Refusals must be on grounds of relevance, privilege, or improper question (Rule 31.07). Non-parties may be examined with leave (Rule 31.10).

Application to Acme. Kumar (as Acme's principal) is the obvious corporate representative. True North will examine Kumar for up to seven hours. Kumar must inform herself in advance - review the refrigeration records, the delivery logs, the communications with Reliable, and the former employee's file. True North may also seek leave under Rule 31.10 to examine the former employee - likely granted given the recording (the employee's evidence is material; cannot be obtained otherwise; not unduly prejudicial). The Q5(c) of the 2022 sample exam is incorrect: True North cannot examine other Acme employees without bringing a Rule 31.10 motion or obtaining consent - only one corporate representative is allowed under Rule 31.03(2).

Issue 3 - Privileges and Other Exclusions

Rule. Privileged documents are listed in Schedule B but are not produced. The principal privileges are solicitor-client (*Pritchard v Ontario*, 2004 SCC 31; *Blood Tribe*, 2008 SCC 44 - near-absolute, subject only to the *Smith v Jones* public-safety exception), litigation (*Blank v Canada*, 2006 SCC 39 - dominant purpose; ends with the litigation; *Lizotte v Aviva*, 2016 SCC 52 - class privilege), settlement (*Union Carbide*, 2014 SCC 35), and case-by-case under the Wigmore four-part test (*AM v Ryan*, [1997] 1 SCR 157).

Application. Acme's communications with its lawyer about this dispute are protected by solicitor-client privilege - listed on Schedule B; not produced. Internal investigation reports prepared after Acme reasonably anticipated this litigation may be protected by litigation privilege if their dominant purpose was preparation for litigation (*Blank*). Communications with True North aimed at resolving the dispute are protected by settlement privilege (*Union Carbide*). The former employee's recording is NOT privileged - it was made by the employee for personal reasons, not for Acme; it is producible.

Issue 4 - Continuing Duty, Deemed Undertaking, and Proportionality

Rule and Application. Acme has a continuing duty to update its Affidavit of Documents (Rule 30.07). The deemed undertaking (Rule 30.1) prevents True North from using Acme's discovery information for any purpose other than this proceeding - Acme's competitor would not be able to

use Acme's confidential pricing information against Acme outside this case. Proportionality (Rules 1.04(1.1), 29.2) means discovery scope must be calibrated to the value at stake; if True North's claim is large, more extensive discovery is justified.

Conclusion

Discovery proceeds in two phases - documentary under Rule 30 and oral under Rule 31. Both are governed by relevance, continuing duty, the deemed undertaking, and proportionality. Privilege excludes solicitor-client, litigation, and settlement communications, but not the former employee's recording. Acme must produce a thorough Affidavit of Documents listing the refrigeration records, communications with Reliable, and the recording itself, while protecting privileged materials in Schedule B. Kumar will be examined for up to seven hours as Acme's representative.

C.5 Question 4 (20 marks) - Disposition Without Full Trial

The question

Acting for True North (in possession of the recording), describe the basic adversarial, non-consensual processes available to fully or partially deal with the matter without going to trial - purpose, mechanics, differences between options, applicable tests. Then recommend a process for True North.

Roadmap

The principal adversarial disposition mechanisms are summary judgment (Rule 20), striking pleadings (Rule 21), special case (Rule 22), default judgment (Rule 19), and dismissal for delay (Rule 24). I will canvass each, then recommend summary judgment as best suited.

Issue 1 - Summary Judgment under Rule 20

Rule. Rule 20.04(2) requires the court to grant summary judgment where there is no genuine issue requiring a trial. The Hryniak v Mauldin, 2014 SCC 7 roadmap applies. Step 1: based on the motion record and ordinary inferences, is there a genuine issue requiring a trial? There is no genuine issue if the summary judgment process provides the evidence necessary to fairly and justly adjudicate the dispute and is timely, affordable, and proportionate (Hryniak paras 49–66). Step 2: if there appears to be a genuine issue, can the court avoid a trial by exercising its enhanced fact-finding powers under Rule 20.04(2.1) (weigh evidence, evaluate credibility, draw reasonable inferences) or by hearing oral evidence under Rule 20.04(2.2) (the "mini-trial" power)? These powers are presumptively available unless their use is contrary to the interests of justice.

Application to True North. True North has the recording - apparently dispositive evidence that Acme's refrigeration unit was malfunctioning before shipment. The recording is admissible business-record-style evidence (subject to authentication and confirmation that it was made contemporaneously). If True North can authenticate the recording and establish - through Kumar's discovery transcripts, refrigeration maintenance records, and expert evidence on causation - that Acme's malfunctioning refrigeration caused the spoilage, summary judgment becomes a strong candidate. Step 1 likely supports True North: the evidence on the record (recording + supporting discovery + expert) may be sufficient to fairly determine the dispute. If Acme contests credibility (e.g., disputes the recording's authenticity, blames Reliable), Step 2 allows the court to weigh credibility and to call oral evidence under Rule 20.04(2.2) if needed.

Issue 2 - Striking Pleadings under Rule 21

Rule. Rule 21.01(1)(b) allows a party to move to strike a pleading on the ground that it discloses no reasonable cause of action or defence. Test: "plain and obvious" that the claim has no reasonable prospect of success, taking the pleaded facts as true (R v Imperial Tobacco, 2011 SCC 42). Rule 21 is decided on the pleadings alone - no evidence.

Application. Rule 21 is not the right tool here. Acme's defence almost certainly discloses a reasonable defence - denial, contributory negligence (improper refrigeration at True North), causation by Reliable. The defence raises factual disputes that cannot be resolved on the pleadings alone. Rule 21 would fail.

Issue 3 - Other Mechanisms

- **Rule 22 (Special Case):** Requires agreement between the parties on a question of law on agreed facts. Acme would not agree on facts that are disputed.
- **Rule 19 (Default Judgment):** Acme has filed (or will file) a defence, so default judgment is unavailable.
- **Rule 24 / 48.14 (Delay):** These are dismissal mechanisms for plaintiff inactivity. They cut against True North, not Acme.
- **Rule 25.11 (Strike Scandalous, Frivolous, Vexatious):** Could strike portions of Acme's defence if scandalous (e.g., baseless allegations against True North's principals), but won't dispose of the case.

Recommendation

Summary judgment under Rule 20 is the right mechanism for True North. With the recording in its possession and (presumably) supporting refrigeration records and expert evidence, True North can build a motion record that satisfies the Hryniak Step 1 analysis. Even if Step 2 is required (credibility on the recording, third-party fault apportionment), the court has Rule 20.04(2.1) fact-finding powers and Rule 20.04(2.2) oral evidence to resolve the issue. Proportionality (Rule 1.04(1.1)) supports summary judgment given the documentary nature of the case and the proportional cost of motion versus full trial.

C.6 Question 5 (20 marks) - True/False Sub-Questions

Each sub-question is worth 2 marks. The model answers below provide the answer (True/False) and the brief reasoning.

(a) True North first became aware of spoiled meat on 27 April 2020. True North would typically need to commence proceedings against Acme no later than 27 April 2021. - **FALSE.** The basic limitation period under the Limitations Act, 2002 s 4 is two years. True North would need to commence proceedings by 27 April 2022, not 27 April 2021. The four discoverability elements under s 5(1)(a) (Grant Thornton 2021 SCC 31) crystallised on 27 April 2020.

(b) Reliable, sued by True North alone, denies liability and considers the driver primarily responsible. Reliable would use a Counterclaim against the driver to cover any damages. - **FALSE.** A counterclaim (Rule 27) is brought against the plaintiff. Reliable's claim against its driver - a non-party - would be brought as a Third Party Claim under Rule 29 for contribution and indemnity (Negligence Act s 1).

(c) True North sues Acme; Kumar is examined for discovery on Acme's behalf. True North may, without motion or consent, also discover any other employee of Acme. - **FALSE.** Rule 31.03(2)

limits oral discovery of a corporation to one representative. Examining additional employees requires a motion under Rule 31.10 (with leave) or the consent of the corporation.

(d) Losing parties pay costs at trials, but losing parties do not pay costs on motions. - **FALSE**. Costs follow the event on motions just as at trials (Rule 57.03). The unsuccessful party on a motion is regularly ordered to pay costs to the successful party (Rule 57.01 factors; CJA s 131 discretion).

(e) Proportionality is designed to improve civil justice. - **TRUE**. Rule 1.04(1.1) codifies proportionality as a procedural principle aimed at ensuring orders proportionate to the importance and complexity of the issues and the amount involved. *Hryniak v Mauldin*, 2014 SCC 7 frames proportionality as central to the access-to-justice culture shift.

(f) Masters are involved in settlement discussions, judges are not. - **FALSE**. (Now "Associate Judges" - Rule 1.03; CJA s 87.) Both Associate Judges and Superior Court judges may participate in settlement discussions, particularly during pre-trial conferences (Rule 50). The pre-trial conference judge does not preside at trial (Rule 50.10) precisely to preserve frank settlement discussion.

(g) Two different causes of action and two different plaintiffs may not be joined in one statement of claim. - **FALSE**. Rule 5.01 permits joinder of multiple plaintiffs and multiple causes of action where there is a common question of law or fact and the rights to relief arise out of the same transaction or series. Misjoinder is not fatal (Rule 5.05).

(h) A defendant from outside Canada may not be sued by a plaintiff from outside Canada using a court process in Canada. - **FALSE**. A foreign plaintiff may sue a foreign defendant in Ontario where Ontario has jurisdiction simpliciter under Van Breda's four presumptive connecting factors, even if neither party is a resident of Canada. The court may also require the plaintiff to post security for costs (Rule 56.01(1)(a) - plaintiff resident outside Ontario).

(i) Originating processes do not typically need to be served personally. - **FALSE**. Rule 16.01 requires originating processes (statements of claim, notices of application) to be served personally unless the Rules expressly provide otherwise. Rule 16.03 provides limited alternatives (acceptance by lawyer, alternative to personal service at the residence).

(j) Evidence on motions is typically brought by way of affidavit. - **TRUE**. Rule 39.01 - affidavit is the default and overwhelmingly most common form of evidence on motions. Rule 39.02 allows cross-examination on affidavits. Direct examination requires leave (Rule 39.03).

